

Smt Kusuma Kumari vs The District Registrar on 11 February, 2026

Author: Suraj Govindaraj

Bench: Suraj Govindaraj

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WP No. 16638 of 2010

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF FEBRUARY, 2026

BEFORE

THE HON'BLE MR. JUSTICE SURAJ GOVINDARAJ
WRIT PETITION NO. 16638 OF 2010 (GM-ST/RN)
BETWEEN

1. SMT KUSUMA KUMARI
AGED ABOUT 54 YEARS,
W/O V K KAMALANABHAN
R/A 159/171, 7TH CROSS,
III MAIN, CHAMARAJPET,
BANGALORE-560018
2. SRI M MALLAVEERAIHAH
AGED ABOUT 75 YEARS,
S/O LATE S. MALLAPPA
R/A SHIVANAHALLI,
KANAKAPURA TALUK,
RAMANAGARA DISTRICT
REP BY ITS GPA HOLDER
SRI B.M KARUNESH
S/O LATE B.M MADAIHAH

Digitally signed
by SHWETHA
RAGHAVENDRA
Location: HIGH
COURT OF
KARNATAKA

...PETITIONERS

(BY SRI. SANDESH J. CHOUTA., SR. ADVOCATE FOR
SRI. VIKRAM UNNI RAJAGOPAL., ADVOCATE)

AND

1. THE DISTRICT REGISTRAR

SHIVAJINAGAR REGISTRATION DISTRICT
BANASAVADI,
BANGALORE-560043

2. THE SENIOR SUB-REGISTRAR
BANGALORE SOUTH TALUK
(PRESENTLY BOMMANAHALLI)

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BANGALORE

3. SRI VEERABHADRAPPA
AGED ABOUT 48 YEARS,
S/O LATE SADAPPA

4. SRI KARIMUNIYAPPA
AGED ABOUT 45 YEARS,
S/O LATE SADAPPA

RESPONDENTS 3 & 4 ARE
RESIDING AT PARANGIPALYA,
HAMLET OF HARALAKUNTE,
BEGUR HOBLI, BANGALORE SOUTH TALUK
BANGALORE

5. SRI AMITHANAND
AGED ABOUT 23 YEARS,
S/O V.K KAMALANABHAN
R/A 159/171, 7TH CROSS,
III MAIN, CHAMARAJPET,
BANGALORE-560018

.... RESPONDENTS

(BY SRI. MAHANTESH SHETTAR., AGA FOR R1, R2;
SRI. ASHOK HARANAHALLI., SR. ADVOCATE FOR
SRI. G.V SHASHIKUMAR., ADVOCATE FOR R3 & R4;
V/O DATED 29.07.2011 PETITION STANDS
DISMISSED AGAINST R5)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227
OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF
CERTIORARI, OR ANY OTHER WRIT, ORDER OR DIRECTIONS
QUASHING THE ORDER NO.RA4/2008-09 DATED 31.10.2009 PASSED
BY THE 1ST RESPONDENT (ANNEXURE-M) AND ETC.

THIS WRIT PETITION COMING ON FOR ORDERS AND HAVING
BEEN RESERVED FOR ORDERS ON 04.11.2025, THIS DAY, THE
COURT PRONOUNCED THE FOLLOWING:

CORAM: HON'BLE MR. JUSTICE SURAJ GOVINDARAJ

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CAV ORDER

1. The Petitioners are before this Court seeking for the following reliefs:
 - i. Issue of writ of certiorari, or any other writ, order or directions quashing the order No.RA4/2008-09 dated 31.10.2009 passed by the 1st Respondent (Annexure-M)
 - ii. Issue any other writ, order or directions as this Hon'ble Court deem fit to pass in the circumstances of the case including awarding cost of this writ petition.
2. The subject property forms part of land bearing Sy.No.18 (1C, 1A, 1A), totally measuring 35 acres, which originally belonged to the joint family of Sri Kuppaswamy Naidu. Upon partition among him and his seven sons, an extent of 3 acres 29 guntas was allotted to the share of Sri V.K. Kamalanabhan. Petitioner No.1 is his wife and Respondent No.5 is their son.
3. It is the specific case of the Petitioners that Sri V.K. Kamalanabhan was suffering from prolonged mental

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illness and was, for a considerable period, incapable of understanding the nature of transactions or entering into any valid contract. Notwithstanding this alleged incapacity, Sri Sadappa, the father of Respondent Nos.3 and 4, propounded a sale deed said to have been executed by Sri Kamalanabhan and presented the same for registration before the Senior Sub-Registrar, Bangalore South, on 18.02.1988.

4. At the time of presentation of the said document for registration, the mandatory clearance certificate contemplated under Section 230A of the Income Tax Act, 1961 had not been produced. In view of such non-production, the Sub-Registrar refused registration and assigned the document a pending number, namely 96-P-642/87-88. The document thus remained unregistered and pending.
5. According to the Petitioners, no further steps were taken by Sri Sadappa to cure the defect or to comply

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with the statutory requirement. Sri Sadappa is stated to have died on 03.08.2002 without producing the income tax clearance certificate and without taking any steps to complete the registration process. The Petitioners assert that the transaction was never concluded; the registration remained incomplete; no consequential entries were effected in the revenue records; and the katha continued to stand in the name of Sri Kamalanabhan.

6. The Petitioners further state that Sri Kamalanabhan, owing to his mental condition, had left the matrimonial home, and his whereabouts remained unknown to the family. After the lapse of seven years without any information regarding his existence, he was presumed to be dead in accordance with law. Thereafter, Petitioner No.1 and Respondent No.5 approached the revenue authorities seeking mutation of their names in respect of the property. By order

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dated 30.04.2005 in M.R. No.130/2004, their names came to be entered in the revenue records.

7. It is contended by the Petitioners that under Section 34 of the Registration Act, 1908, read with Rule 187 of the Karnataka Registration Rules, 1965, a document presented for registration and refused by the Sub-Registrar cannot be kept pending indefinitely and that the power to keep such a document pending is confined to a limited statutory period of four months. The sale deed in question having been presented and refused on 18.02.1988, and no compliance having been made within the prescribed period, the Petitioners contend that the document could not have been legally revived or acted upon after the lapse of several years.
8. However, it transpired that on 10.11.2000, the Sub-Registrar passed an order observing that the document could not be refused registration. Subsequently, Respondent Nos.3 and 4, claiming to
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be the children and legal representatives of Sri Sadappa, preferred an appeal in R.A. No.3/2005-06 before the District Registrar on 18.08.2005. In the said appeal, neither Petitioner No.1 nor Respondent No.5 were arrayed as parties. An application for

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condonation of delay was filed and allowed. By order dated 10.01.2006, the appeal was allowed and a direction was issued to register the sale deed.

9. In the interregnum, Petitioner No.1 and Respondent No.5, asserting their title based on mutation and presumption of death of Sri Kamalanabhan, executed a sale deed dated 11.07.2005 in favour of Petitioner No.2 conveying the subject property.
10. Aggrieved by the appellate order dated 10.01.2006, Petitioner No.1 and Respondent No.5 filed W.P. No.3054/2006, and Petitioner No.2 filed W.P. No.1641/2007. Both writ petitions were heard together. By order dated 18.08.2008, the High Court quashed the order dated 10.01.2006 passed in R.A.

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No.3/2005-06 and remitted the matter to the District Registrar for fresh consideration, keeping all contentions open.

11. Pursuant to the remand, the appeal was renumbered as R.A. No.4/2008-09, and the Petitioners were impleaded as parties. The Petitioners contend that they were under the bona fide impression that the matter would be reconsidered de novo in light of the

remand order. However, according to them, the proceedings continued from the stage at which they had earlier culminated, and ultimately, by order dated 31.10.2009, the appeal was once again allowed and the Sub-Registrar was directed to register the sale deed.

12. It is the said order dated 31.10.2009 that is presently under challenge before this Court.
13. Sri. Sandesh J. Chouta, learned Senior Counsel appearing for the petitioners, submits as under:

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- 13.1. The sale deed propounded by late Sri Sadappa was never registered and had in fact been kept pending for want of compliance with the mandatory requirement under Section 230A of the Income Tax Act, 1961. The Sub-Registrar had issued notices to Sri Sadappa on 27.09.1989 and again on 27.07.1999 calling upon him to produce the requisite tax clearance certificate. Despite issuance of repeated notices spanning nearly a decade, no such certificate was forthcoming. Ultimately, by order dated 10.11.2000, the Sub-Registrar formally refused

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registration on the ground of non-production of
the certificate.

13.2. Learned Senior counsel further points out that
Section 230A of the Income Tax Act, which
imposed restrictions on registration of transfers
of immovable property exceeding the
prescribed value without prior tax clearance,

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was subsequently omitted by the Finance Act,
2001 with effect from 01.06.2001. Prior to its
omission, the section mandated production of a
certificate from the Assessing Officer for
registration of property valued above five lakh
rupees. However, the refusal order dated
10.11.2000 had already been passed when the
provision was very much in force.

13.3. Sri Sadappa expired on 03.08.2002. Thereafter,
Petitioner No.1 and Respondent No.5, being the
legal heirs of Sri V.K. Kamalanabhan, executed
a registered sale deed dated 11.07.2005 in
favour of Petitioner No.2. It is only subsequent
to this registered conveyance that Respondent
Nos.3 and 4 filed an appeal on 18.08.2005 in

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R.A. No.3/2005-06 under Section 72(1) of the
Registration Act, 1908, accompanied by an
application seeking condonation of delay under
Section 5 of the Limitation Act, 1963.

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13.4. By the time the appeal was filed, valuable legal rights had already crystallised in favour of Petitioner No.2 under a registered instrument. The filing of the appeal was thus not only belated but was initiated after third-party rights had intervened.

13.5. In the affidavit filed in support of the condonation application, Respondent Nos.3 and 4 stated that they came to know of the refusal order dated 10.11.2000 only in the first week of July 2005. Learned counsel submits that this statement is demonstrably false and is belied by official records.

13.6. Respondent Nos.3 and 4 deliberately chose not to implead Petitioner No.1, Respondent No.5 or Petitioner No.2 in the appellate proceedings, despite being fully aware of their interest in the property. This omission, it is argued, was not

inadvertent but calculated.

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13.7. Insofar as Petitioner No.2 is concerned, learned senior counsel stresses that his sale deed dated 11.07.2005 was duly registered. Respondent Nos.3 and 4 are deemed in law to have constructive notice of such registration. Despite this, they took no steps to bring Petitioner No.2 on record in the appellate proceedings, even though he had become the registered owner of the property.

13.8. When the order dated 10.01.2006 was challenged in W.P.Nos.3054/2006 and 1641/2007, this Court quashed the order and remitted the matter for fresh consideration. Since the Petitioners were not parties to the earlier proceedings and had not been heard on the application for condonation of delay, the remand necessarily required a de novo consideration commencing from the stage of limitation. However, the District Registrar

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misconstrued the remand order and proceeded from the stage of final hearing without rendering a proper finding on limitation. This, according to learned counsel, vitiates the entire proceeding.

13.9. Attention is also invited to various interim orders passed by this Court directing the learned Additional Government Advocate to produce records including the despatch register. Eventually, the Inspector General of Registration and Commissioner of Stamps filed an affidavit after verification of official records.

13.10. Relying on the affidavit of the Inspector General, learned Senior Counsel submits that the refusal order dated 10.11.2000 was duly entered in Book-II maintained in the office of the Sub-Registrar. It is further recorded that copies of the refusal order were issued on 10.11.2000 to the legal heirs of Sri Sadappa,

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namely Sri Veerabhadrapa and Sri

Karimuniyappa. The procedure prescribed under Section 72(1) of the Registration Act was thus fully complied with. The appeal, however, was filed only on 18.08.2005, nearly five years thereafter.

13.11. Respondent Nos.3 and 4 were fully aware of the refusal order and that the appeal was hopelessly barred by limitation.

13.12. Placing reliance on Section 72(1) of the Registration Act read with Rule 191(1) of the Karnataka Registration Rules, learned senior counsel submits that the District Registrar has no statutory power to condone delay in filing an appeal under Section 72. Section 72(1) expressly mandates that an appeal against an order of refusal shall be presented within thirty days from the date of the order.

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13.13. Reference is also made to Rule 175 of the Registration Rules, which requires that an appeal under Section 72 must be accompanied by a copy of the refusal order and the original document in respect of which refusal was

made. These procedural safeguards underscore the strict and time-bound nature of the appellate remedy.

13.14. Learned Senior counsel further draws a distinction between Section 72 and Section 73 of the Registration Act. Section 72 applies where refusal is for reasons other than denial of execution. Section 73 applies where refusal is on account of denial of execution and provides a distinct procedural mechanism. It is submitted that only in proceedings under Section 73 can there be scope for extension or condonation within the framework

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contemplated by that provision. No such latitude exists under Section 72.

13.15. The submission, therefore, is categorical: the appeal filed on 18.08.2005 against the refusal order dated 10.11.2000 was grossly time-barred; the District Registrar lacked jurisdiction to condone delay; the condonation order is without authority of law; and all consequential proceedings directing

registration of the sale deed are liable to be set aside on that ground alone.

13.16. He relies upon the decision in the case of

AMRAWATI VS. REGISTRAR/APAR
COLLECTOR PRATAPGARH AND OTHERS¹,
more particularly, paras 3, 6, 14, 19, 20 and
21, which are reproduced hereunder for easy
reference.

"3. It is contended that in case of refusal of
registration by Sub-Registrar, appeal lies under

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Section 72 of Act, 1908 and limitation provided therein is only 30 days. In the present case, admittedly appeal was filed beyond the period of 30 days and for condonation of delay, an application under Section 5 of Indian Limitation Act, 1963 (hereinafter referred to as "Act, 1963") was also filed. Registrar condoned delay and thereafter passed order directing Sub-Registrar to register the document. Contention is that Registrar, while exercising appellate power under Section 72 of Act, 1908, is not a Court and, therefore, provisions of Act, 1963 are not applicable and, therefore, impugned order is patently without jurisdiction.

6. There are catena of decisions where it has been held in respect of proceedings before Tribunals/quasi judicial bodies (where Act, 1963 is not applicable since it is applicable to the Courts) that if the Statute concerned has not made Act, 1963 applicable, provisions thereof cannot be applied to such proceedings.

14. I also find that the issue in the context of Section 72 and 78 of Act, 1908 itself came up for

consideration before a learned Single Judge in State of U.P. v. District Registrar, Meerut, AIR 1971 All 390. Court held that District Registrar is a creation of Act, 1908 and to exercise only those powers that have been given to him under Act, 1908. He does not exercise powers of a Court, though he sits in appeal against the order of Sub-Registrar under Section 72 of Act, 1908 but the powers therein are limited. Under Section 72 of Act, 1908 he can only direct a document to be registered by Sub-Registrar, who has refused registration on the ground, other than denial of execution. Court categorically said:

19. Considering overwhelming authorities on the subject holding that Register while exercising power under Section 72 and 73 of Act, 1908 is not a Court and, therefore, Act, 1963 will not be applicable, learned counsel for respondent-2 could not dispute this fact that as a proposition of law, Act, 1963 was not applicable and Registrar could not have condoned delay.

20. In these circumstances, it is held that Registrar erred in law in entertaining appeal after expiry of period of limitation prescribed in Section 72 by condoning delay since it has no power to condone delay with reference to

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Section 5 of Act, 1963 and, therefore, appeal was illegally entertained. It was liable to be rejected as barred by limitation.

21. Now coming to second aspect whether this Court should interfere in this particular matter or not, once it is clear that Registrar was not competent to entertain appeal after expiry of period of limitation by condoning delay under Section 5 of Act, 1963, the impugned order becomes patently without jurisdiction and cannot be sustained. As already noticed, the law of limitation though harsh, still it has to be made effective as it is and various considerations brought by learned counsel for respondents, in my view, are not justified to allow to sustain a patently without jurisdiction order."

13.17. By relying on Amrawati, he submits that the

said decision directly addresses the precise legal question that arises in the present case, namely, whether the District Registrar, while exercising appellate jurisdiction under Section 72 of the Registration Act, possesses the authority to condone delay by invoking Section 5 of the Limitation Act, 1963.

13.18. In Amrawati, the Hon'ble Allahabad High

Court was concerned with a situation where an appeal under Section 72 had been filed beyond

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the prescribed thirty-day period. An application under Section 5 of the Limitation Act was filed seeking condonation of delay, and the Registrar condoned the delay and proceeded to direct registration of the document. The legality of such condonation was questioned.

13.19. The Hon'ble Allahabad High Court, after examining the statutory scheme and earlier precedents, held in clear and categorical terms that the Registrar exercising powers under Sections 72 and 73 of the Registration Act is not a "Court". He is a statutory authority

created by the Registration Act and is confined strictly to the powers expressly conferred by that enactment. Though he may act in an appellate capacity, he does not exercise judicial power in the sense understood under the Limitation Act.

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13.20. It was further held that the Limitation Act, 1963 applies to Courts and to such tribunals or authorities only where the statute expressly makes it applicable. In the absence of any provision in the Registration Act incorporating or extending the Limitation Act to proceedings under Section 72, the Registrar cannot invoke Section 5 thereof.

13.21. The Hon'ble Allahabad High Court in Amrawati observed that there exists a consistent line of authority holding that where a special statute prescribes a limitation period and does not provide for extension of time, nor makes the Limitation Act applicable, the authority functioning under that statute cannot assume a power of condonation by implication.

The Registrar, being a creature of the statute,
cannot travel beyond its text.

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13.22. Particular emphasis is laid upon the Court's observation that Section 72 prescribes a period of thirty days for filing an appeal against an order of refusal by the Sub-Registrar and does not contain any enabling provision for condonation of delay. The Hon'ble Allahabad High Court held that the Registrar "erred in law" in entertaining an appeal filed beyond limitation by invoking Section 5 of the Limitation Act, since such power was not vested in him.

13.23. The Hon'ble Allahabad High Court further held that once it is established that the authority lacked jurisdiction to entertain the appeal beyond limitation, the resultant order becomes patently without jurisdiction and cannot be sustained. The law of limitation, even if it operates harshly, must be given effect as

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enacted. Equitable considerations cannot confer jurisdiction where none exists.

13.24. Relying upon these principles, learned Senior counsel submits that the position in the present case is materially indistinguishable. The refusal order of the Sub-Registrar was passed on 10.11.2000. Section 72(1) of the Registration Act required that any appeal against such refusal be filed within thirty days. However, the appeal in R.A. No.3/2005-06 was filed only on 18.08.2005, nearly five years after the order of refusal.

13.25. The District Registrar, while entertaining the appeal and condoning the delay under Section 5 of the Limitation Act, assumed a jurisdiction which the statute does not confer. The Registrar, not being a Court, could not have invoked the Limitation Act. Section 72 does not provide for enlargement of time. Therefore, the

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very entertainment of the appeal was incompetent in law.

13.26. The distinction between Sections 72 and 73 of the Registration Act further fortifies this position. Section 72 deals with refusal on grounds other than denial of execution and provides a narrow appellate remedy within a fixed time frame. Section 73 deals with cases involving denial of execution and contemplates a different procedural mechanism. Even assuming that some procedural latitude may be available in proceedings under Section 73, no such latitude exists under Section 72. The legislature, having consciously prescribed a thirty-day period without providing for extension, must be taken to have intended finality.

13.27. It is therefore submitted that once the appeal was filed beyond the statutory period of thirty

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days, the District Registrar had no authority to entertain it. The order condoning delay is without jurisdiction. The subsequent order

directing registration of the document is equally unsustainable, being founded upon an incompetent proceeding.

13.28. The issue is not one of sufficiency of cause for delay, but one of lack of jurisdiction. When the statute withholds power to condone delay, the authority cannot create such power by recourse to general principles. The impugned order, having been passed in excess of statutory authority, is liable to be quashed on that ground alone.

13.29. He relies upon the decision in the case of NEW INDIA ASSURANCE COMPANY LIMITED Vs. HILLI MULTIPURPOSE COLD STORAGE PRIVATE LIMITED², more particularly, paras

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13 and 20 thereof, which are reproduced hereunder for easy reference.

"13. On the contrary, sub-section (2)(a) of Section 13 of the Consumer Protection Act provides for the opposite party to give his response "within a period of 30 days or such extended period not exceeding 15 days as may be granted by the District Forum". The intention

of the legislature seems to be very clear that the opposite party would get the time of 30 days, and in addition another 15 days at the discretion of the Forum to file its response. No further discretion of granting time beyond 45 days is intended under the Act.

20. The legislature in its wisdom has provided for filing of complaint or appeals beyond the period specified under the relevant provisions of the Act and Regulations, if there is sufficient cause given by the party, which has to be to the satisfaction of the authority concerned. No such discretion has been provided for under Section 13(2)(a) of the Consumer Protection Act for filing a response to the complaint beyond the extended period of 45 days (30 days plus 15 days). Had the legislature not wanted to make such provision mandatory but only directory, the provision for further extension of the period for filing the response beyond 45 days would have been provided, as has been provided for in the cases of filing of complaint and appeals. To carve out an exception in a specific provision of the statute is not within the jurisdiction of the courts, and if it is so done, it would amount to legislating or inserting a provision into the statute, which is not permissible."

13.30. Learned Senior counsel, placing reliance upon

Hilli Multipurpose Cold Storage, submits

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that the said decision enunciates an authoritative principle of statutory interpretation directly applicable to the present controversy.

13.31. In Hilli Multipurpose Cold Storage, the

Hon'ble Supreme Court was concerned with the construction of Section 13(2)(a) of the Consumer Protection Act, which granted to the opposite party a period of 30 days to file its response, extendable by a further 15 days at the discretion of the Forum. The question arose whether the Forum could extend the time beyond the total outer limit of 45 days.

13.32. The Hon'ble Supreme Court held that the legislative intent was clear and unambiguous. The statute expressly granted a period of 30 days, with a further discretionary extension of 15 days. No additional discretion was contemplated. The Hon'ble Supreme Court

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observed that in other provisions of the same enactment, where the legislature intended to permit filing beyond prescribed periods upon sufficient cause being shown, it had expressly provided for such condonation. The absence of similar language in Section 13(2)(a) was therefore deliberate. The Hon'ble Supreme Court held that to permit further extension

beyond what the statute expressly contemplated would amount to judicial legislation and insertion of words not found in the provision.

13.33. The reasoning adopted by the Hon'ble Supreme Court applies with greater force to Section 72(1) of the Registration Act. Section 72 prescribes that an appeal from an order of refusal of registration (for reasons other than denial of execution) shall be presented within thirty days from the date of the order. The

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provision does not contain any clause permitting extension of time. It does not employ expressions such as "sufficient cause" or "such further time as may be allowed." It does not incorporate or refer to the Limitation Act. It simply fixes a period of thirty days.

13.34. When the legislature has prescribed a definite period of limitation without providing for extension, the period must be treated as mandatory. If the legislature intended to confer power upon the District Registrar to

condone delay, it would have expressly said so. The omission is therefore intentional and cannot be supplied by interpretation.

13.35. Drawing a parallel with the reasoning in Hilli

Multipurpose Cold Storage, learned senior

counsel submits that where the legislature has,

in other contexts, expressly provided for condonation of delay, but has omitted such a

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provision in a specific section, the Court must give effect to that omission. The authority exercising statutory power cannot enlarge its jurisdiction by invoking general principles or by importing provisions from another statute.

13.36. Section 72 constitutes a complete code in itself

so far as appeals from refusal orders are concerned. The District Registrar, being a statutory authority and not a Court, is bound strictly by the limitations of the statute. In the absence of any express power of condonation, he could not have entertained an appeal filed nearly five years beyond the date of refusal.

13.37. The principle laid down by the Hon'ble

Supreme Court in Hilli Multipurpose Cold

Storage emphasises judicial restraint in matters of statutory interpretation. Courts and statutory authorities alike are prohibited from reading into a provision words or powers that

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the legislature has consciously omitted. To do so would amount to legislating under the guise of interpretation.

13.38. Applying that principle to the present case, he submits that the appeal filed on 18.08.2005 against the refusal order dated 10.11.2000 was plainly beyond the statutory period of thirty days. Since Section 72 does not contemplate extension of time, the District Registrar lacked authority to condone the delay. The order condoning delay, and the subsequent direction to register the document, are therefore vitiated by lack of jurisdiction.

13.39. He accordingly submits that the impugned order cannot be sustained in law and is liable to be quashed on this ground alone.

13.40. He relies upon the decision in the case of

AMAN ENGINEERING WORKS Vs.

REGISTRAR TRADE MARKS, TRADE MARKS

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REGISTRY AND ANOTHER3, more

particularly, paras 18 and 26, which are reproduced hereunder for easy reference.

18. A reading of the above Rule would show that an application seeking review of a decision of the Registrar of Trade Marks/respondent no. 1 has to be made within a period of one month from the date of such decision or within such further period not exceeding one month thereafter, as the Registrar of Trade Marks/respondent no. 1 may on request allow. Therefore, it sets the maximum outer limit by which the delay in filing of an application seeking review of the decision of the Registrar of Trade Marks/respondent no. 1 can be condoned.

26. Section 131 of the Act empowers the Registrar of Trade Marks/respondent no. 1 to extend the time for doing any act, provided the time period is not expressly provided in the Act. As held by the Supreme Court, as also by this Court in the above referred judgments, the period prescribed under Rule 119 of the Rules has to be considered as one prescribed in the Act itself. The Registrar, therefore, has no power to condone the delay beyond the period prescribed by the said Rule.

13.41. Learned senior counsel by relying on the judgement of the Hon'ble Delhi High Court in Aman Engineering Works submits that the

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statutory discretion in matters of limitation and
extension of time.

13.42. In Aman Engineering Works, the Hon'ble
Delhi Court was dealing with Rule 119 of the
Trade Marks Rules, which provided that an
application seeking review of a decision of the
Registrar must be filed within one month from
the date of the decision, and that the Registrar
may, on request, allow a further period not
exceeding one month. Thus, the rule itself
prescribed both the primary limitation period
and the maximum outer limit within which
delay could be condoned.

13.43. The Hon'ble Delhi High Court observed that the
Rule clearly fixed an outer boundary for
condonation. It further held that Section 131 of
the Trade Marks Act, which empowered the
Registrar to extend time for doing any act,
would not apply where the time period was

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expressly provided in the Act or Rules. Once the statute or statutory rules prescribe a specific time frame and caps the permissible extension, the authority cannot enlarge it beyond what is expressly provided. The Hon'ble Delhi High Court concluded that the Registrar had no power to condone delay beyond the statutorily prescribed period.

13.44. Learned Senior counsel submits that the principle emerging from Aman Engineering Works is that when the legislature or delegated legislation prescribes a definite time frame and either limits or omits the power of extension, the authority must act strictly within those confines. Jurisdiction is co-extensive with the statute and cannot be expanded by interpretation.

13.45. Applying this reasoning to the present case,

learned Senior counsel submits that Section

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72(1) of the Registration Act prescribes a period of thirty days for filing an appeal against an order of refusal passed by the Sub-Registrar. Unlike the provision considered in Aman Engineering Works, Section 72 does not even provide for a limited extension. There is no clause permitting enlargement of time. There is no maximum outer limit. There is no discretion vested in the District Registrar to condone delay. The statute is silent on any power of extension.

13.46. He submits that if, in a case where a limited extension was expressly permitted, the Hon'ble Delhi High Court held that the authority could not travel beyond the outer boundary fixed by statute, then in a case such as the present, where no extension is contemplated at all, the authority cannot assume such power even by

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implication. To do so would amount to reading into Section 72 words that are not there.

13.47. Learned Senior counsel further submits that

the Registration Act is a self-contained statute governing the manner in which documents are to be registered and the remedies available against refusal. The appeal provision under Section 72 is a creature of statute. The right of appeal itself is statutory and not inherent. Therefore, the conditions attached to that right, including limitation, must be strictly complied with. Once the statutory period expires, the right to appeal stands extinguished, unless the statute itself preserves it.

13.48. In the present case, the refusal order was passed on 10.11.2000. The appeal under Section 72 was required to be filed within thirty days i.e., by 09.12.2000. However, it

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was filed only on 18.08.2005, nearly five years later. Section 72 contains no provision enabling the District Registrar to condone delay. In these circumstances, learned senior counsel submits that the District Registrar acted beyond the limits of his statutory authority in

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entertaining the appeal and condoning the
delay.

13.49. He therefore contends that the impugned order
directing registration of the document is
vitiating by lack of jurisdiction and is liable to
be set aside.

13.50. He relies upon the decision in the case of
INDIAN COFFEE WORKER'S CO-OP.
SOCIETY LTD., VS. COMMISSIONER OF
COMMERCIAL TAXES AND OTHERS⁴, more
particularly, paras 7, 21 and 23 thereof which
are reproduced hereunder for easy reference.

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"7. The Deputy Commercial Tax Officer passed
the assessment order in Form No.19 and the
same bears the date 6.10.1990. In the very first
page, before the commencement of the order as
such, under the heading NOTE, the following is
mentioned.

" An appeal against this order lies before the
Appellate Assistant Commissioner of Commercial
Taxes, Cuddalore within 30 days of receipt of this
order".

Section-31 of the Tamil Nadu General Sales Tax
Act reads thus:

"Appeals to the appellate assistant commissioner:

[1] Any person objecting to an order passed by
the appropriate authority under (Section 4-
A), Section 12, Section 14, Section 15,
subsections(1) and (2) of Section 16, Section

18 (sub-section (2) of Section-22, Section 23 (or Section 27) other than an order passed by an Assistant Commissioner) may, within a period of thirty days from the date on which the order was served on him in the manner prescribed, appeal against such order to the Appellate Assistant Commissioner (having jurisdiction):
Provided that the Appellate Assistant Commissioner may admit an appeal presented after the expiration of the said period if he is satisfied that the appellant had sufficient cause for not presenting the appeal within the said period:

Provided further that in the case of an order under Section 12, Section 14, Section 15 or sub-sections (1) and (2) of Section 16 no appeal shall be entertained under this sub section unless it is accompanied by satisfactory proof of the payment of tax admitted by the appellant to be due or of

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such instalment thereof as might have become payable as the case may be.
[2] The appeal shall be in the prescribed form and shall be verified in the prescribed manner."
From the above provision, it is clear that the appeal must be filed in a prescribed format within thirty days from the date of receipt of the assessment order. The Appellate Authority is vested with powers only to condone the delay of 30 days in proper cases where the appellant shows sufficient cause. If one looks at the Communication dated 5/11/1990 sent by the petitioner to the Appellate Assistant Commissioner, it could be noticed that certainly it is not an appeal against the assessment order. If one carefully goes through the said communication, it could be seen that nowhere it is stated that it is an appeal and that the order of the assessment officer has to be set aside. Added to this, the same was not in the prescribed format. The provision under Section 31 (2) of the TNGST Act as could be seen, clearly lays down that the appeal shall be in the prescribed form

and shall be verified in the prescribed manner. At the risk of repetition, it may be stated that the communication dated 5/11/1990 is not an appeal for the reason that the same has not been filed in a prescribed form with proper verification and there is no prayer to set aside the order of the Assessing Authority. In fact, there is not even an allegation in the body of the communication that the assessment order is erroneous for some reason or other and the same is liable to be set aside. Once this Court comes to this conclusion, then, the submission of the petitioner that the appeal was filed even on 5/11/1990 and as it was not in the prescribed form, another appeal was sent on 1.2.1991 has to fail.

21. From the discussions made in paragraphs 8 to 16 supra, the legal position is that the appellant/Assistant Commissioner has no power to condone the delay, whatever may be the reason for the delay, beyond 30 days over and

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above the period prescribed for filing appeal, i.e., 30 days from the date of receiving copy of the order. Consequently, it has to be held that the impugned orders passed by the appellant/Assistant Commissioner as well as Taxation Special Tribunal are legal and proper.

23. The legal position is as follows:

(a) An appeal under Section 30(1) of the Tamil Nadu General Sales Tax Act, 1959 has to be filed within 30 days before the appellate Assistant Commissioner. The appellate Assistant Commissioner is empowered to condone the delay for further period of 30 days if sufficient cause for not presenting the appeal in time is shown and satisfied by the appellate authority.

(b) Under no circumstances, the appellate authority has power to condone the delay beyond 30 days.

(c) While the High Court exercising the jurisdiction under Article 226 of Constitution of India, approves the correctness of the order of the appellate authority, it has no power to direct the

appellate authority to consider the appeal on merits as otherwise it would be nothing but Court extending the period of limitation.

(d) Even if the High Court accepts the explanation given by the assessee for not filing the appeal within the period prescribed under the Act, it cannot direct the appellate authority to consider the matter on merits as the High Court exercising jurisdiction under Article 226 of Constitution of India, cannot re-write the provisions of the Act."

13.51. Learned senior counsel, placing reliance upon

the decision of the Hon'ble Madras High Court

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in Indian Coffee Worker's Co-operative

Society Ltd. submits that the said judgment

lays down, in unmistakable terms, the

discipline that must govern statutory limitation

provisions and the strict confines within which

appellate authorities are required to function.

13.52. In that case, an assessment order was passed

under the Tamil Nadu General Sales Tax Act.

The order itself indicated that an appeal would

lie within thirty days of receipt. Section 31 of

the Act prescribed:

13.52.1. An appeal must be filed within thirty

days from the date of service of the

order.

13.52.2. The appellate authority was empowered to admit an appeal presented after the expiration of that period if sufficient cause was shown.

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13.52.3. However, such condonation was confined to a further period of thirty days, thereby creating an identifiable outer limit.

13.53. The Hon'ble Madras High Court carefully examined whether an appeal filed beyond the statutory outer limit could be entertained and held that the appellate authority's power to condone delay was circumscribed strictly by the language of the statute. The authority could condone delay only within the additional period expressly provided. Beyond that limit, it had no power whatsoever to entertain the appeal, irrespective of the explanation offered.

13.54. The Hon'ble Madras High Court went on to further observe that even the High Court, while exercising jurisdiction under Article 226 of the

Constitution, could not direct the appellate

authority to entertain a time-barred appeal, as

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that would amount to extending the period of

limitation and effectively rewriting the statute.

13.55. Learned Senior counsel submits that the decision crystallises the following propositions:

13.55.1. The right of appeal is statutory; it

exists only within the boundaries

created by the statute.

13.55.2. Limitation attached to a statutory

remedy is substantive and

mandatory.

13.55.3. Where the statute prescribes a time

limit and defines the extent of

permissible condonation, the

authority cannot exceed that

boundary.

13.55.4. Where the statute does not provide

for condonation at all, no such

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power can be assumed by
implication.

13.55.5. Neither equity nor hardship can
enlarge jurisdiction.

13.55.6. Even constitutional courts cannot
compel a statutory authority to act
contrary to the limitation prescribed
by the legislature.

13.56. The Hon'ble Madras High Court in that case
expressly stated that the law of limitation,
however stringent, must operate as enacted,
and judicial sympathy cannot substitute
legislative mandate.

13.57. Learned Senior counsel submits that the
statutory framework under Section 72(1) of
the Registration Act is even more rigid than
the provision considered in Indian Coffee
Worker's case. Under Section 72:

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13.57.1. An appeal against an order of
refusal must be presented within

thirty days.

13.57.2. There is no proviso enabling
condonation.

13.57.3. There is no additional period
provided.

13.57.4. There is no outer boundary clause.

13.57.5. There is no "sufficient cause"
provision.

13.57.6. There is no incorporation of the
Limitation Act.

13.58. Thus, whereas in the Sales Tax statute a
limited condonation power was expressly
conferred, Section 72 contains no such
enabling provision whatsoever.

13.59. If, in a case where limited condonation was
expressly permitted, the authority was held

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incapable of travelling beyond the prescribed
outer limit, then in the present case, where the
statute is silent on condonation thereby barring
condonation, the authority's jurisdiction is
narrower still.

13.60. In the present case:

13.60.1. The Sub-Registrar passed the refusal order on 10.11.2000.

13.60.2. The statutory period of thirty days expired in December 2000.

13.60.3. The appeal was filed only on 18.08.2005.

13.60.4. The delay extends to nearly five years.

13.60.5. Section 72 does not confer power to condone delay.

13.61. Learned counsel submits that the District Registrar, by entertaining the appeal and

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condoning delay, acted outside the bounds of statutory authority. The jurisdiction exercised was not merely erroneous, it was non-existent.

13.62. The reasoning in Indian Coffee Worker's case makes it clear that even if sufficient cause is shown, and even if the delay appears justified, the absence of statutory power to condone renders the authority powerless. Jurisdiction cannot arise from compassion, fairness, or perceived injustice; it must arise

from statute.

13.63. The principle is well settled: when a statute does not provide for condonation of delay, the authority cannot condone it under any circumstances. Section 72 of the Registration Act prescribes a thirty-day limitation and contains no enabling clause for extension. The District Registrar's act of condoning delay of

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nearly five years is thus contrary to statute and without jurisdiction.

13.64. The impugned order directing registration of the document, being founded upon an appeal that was incompetent from inception, is liable to be set aside.

13.65. Learned Senior counsel submits that a serious jurisdictional infirmity vitiates the impugned proceedings inasmuch as the issue of limitation, though specifically raised, has not been adjudicated at all by Respondent No.1.

13.66. He submits that the Petitioners and Respondent No.5 had expressly contended before the appellate authority that the appeal

filed by Respondent Nos.3 and 4 was
hopelessly barred by limitation and that there
existed no statutory power to condone such
delay. Notwithstanding these specific
objections, Respondent No.1 has not passed

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any independent or reasoned order on the
application seeking condonation of delay.

There is no determination of:

13.66.1. When knowledge of the refusal
order was acquired,

13.66.2. Whether the appeal was within
thirty days,

13.66.3. Whether delay stood condoned, and

13.66.4. If so, under what statutory
authority.

13.67. Instead, the proceedings appear to have been

carried forward on the assumption that delay
stood condoned, without any formal
adjudication. Learned counsel submits that
such an approach has deprived the Petitioners
of a valuable right, namely, the right to oppose
limitation and contest the very maintainability

of the appeal.

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13.68. When this Court, by order dated 18.08.2008 in

W.P. No.3054/2006 clubbed with W.P.

No.1641/2007, quashed the earlier appellate

order and remanded the matter for fresh

consideration, it expressly kept all contentions

open. This necessarily included the issue of

limitation and the legality of condonation of

delay. The remand required a fresh application

of mind to all foundational issues. However,

Respondent No.1 has proceeded as though the

question of limitation stood concluded.

13.69. In the earlier impugned order dated

31.10.2009, Respondent No.1 erroneously

proceeded on the premise that the appeal was

within time. This conclusion, he submits,

stands contradicted by the affidavit filed by the

Inspector General of Registration (IGR),

wherein it is categorically stated that:

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13.69.1. The refusal order dated 10.11.2000

was entered in Book-II;

13.69.2. Copies of the refusal order were

issued to Sri Sadappa and his legal
representatives;

13.69.3. The statutory procedure was duly

followed.

13.70. In light of this affidavit, Respondent Nos.3 and

4 cannot plausibly contend that they became

aware of the refusal order only in the first

week of July 2005. Learned counsel submits

that the filing of the affidavit itself

demonstrates that the official record

contradicts the plea of ignorance. Yet,

Respondent No.1 has failed to analyse this

material or record any finding thereon.

13.71. This omission reflects non-application of mind.

The authority has not dealt with the

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documentary evidence placed before it, nor

has it reconciled the plea of delayed knowledge

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with the official record. In the absence of a
reasoned determination on limitation, the final
order directing registration cannot stand.

13.72. The document in question was presented for
registration in the year 1988 and was kept
pending for an inordinately long period. Notices
were issued by the Sub-Registrar on
27.09.1989 and again on 27.07.1999 requiring
compliance. Despite such notices spanning
nearly a decade, Sri Sadappa, during his
lifetime, took no effective steps to cure the
defect or pursue registration.

13.73. It is in that background that the Sub-Registrar
ultimately passed the order of refusal on
10.11.2000. Learned counsel submits that
even this refusal order was passed much

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beyond the permissible period during which a
document could be kept pending.

13.74. Learned Senior counsel's submission on this
aspect is two-fold:

13.74.1. Firstly, under the scheme of the
Registration Act read with the

applicable Rules, once a document presented for registration is refused and the prescribed period of four months has expired, the refusal attains finality. The document cannot be kept pending indefinitely. After expiry of the statutory period, the refusal stands confirmed and concluded in law.

13.74.2. Secondly, the order dated 10.11.2000 must be viewed as a formal order passed in continuation of the earlier refusal. It does not

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create a fresh or independent cause of action. The limitation period for filing an appeal must be reckoned from the date of refusal and not from any subsequent formal communication or reiteration.

13.75. If the statutory scheme does not permit a document to remain pending beyond four months, and if the right of appeal is confined

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to thirty days from refusal, then the attempt to
revive the matter several years later would
defeat the legislative mandate of finality.

13.76. Learned Senior counsel therefore submits that:

13.76.1. The issue of limitation was not
adjudicated.

13.76.2. No reasoned order on condonation
was passed.

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13.76.3. The remand order required fresh
consideration of all contentions.

13.76.4. The affidavit of the IGR contradicts
the plea of delayed knowledge.

13.76.5. The refusal attained finality long
prior to the filing of the appeal.

13.76.6. The order dated 10.11.2000 did not
confer any fresh cause of action.

13.77. Accordingly, the impugned order is vitiated by
non-application of mind, jurisdictional error,
and failure to decide a foundational issue
affecting maintainability. It is therefore liable
to be set aside.

13.78. He relies upon the decision in the case of

R.SAMPATH VS. STATE OF KARNATAKA BY

ITS SECRETARY AND OTHERS⁵, more
particularly, paras 13.3, 13.4, 13.5, 13.8 and

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13.10, which are reproduced hereunder for
easy reference.

"13.3. The Petitioner on the basis of such refusal could have approached the Registrar within 30 days of refusal order dated 8-11-2004 seeking to challenge the said endorsement, which has not been done by the Petitioner.

13.4. The Petitioner has approached this Court in the year 2013 contending that Sub-Registrar ought to have registered the document and seeking for certiorari to quash the endorsement dated 16-8-2012 and for a mandamus directing for registration of the document presented for registration on 8-11-2004.

13.5. From the endorsement dated 16-8-2012 it is seen that the document was registered in the pending category on 8-11-2004 and the pending No. 864 of 2004 was issued. The cause of action for the Petitioner, therefore arose in the year 2004. Though the Petitioner would have challenged the same, the same was not done. The Petitioner having chosen to keep the document pending for registration ought to have taken such steps as are provided either to challenge the said order or comply with the requirements within a reasonable time.

13.8. In view of the above, the cause of action having arisen on 8-11-2004, the Petitioner having not done anything until 19-3-2012 when the first Writ Petition was filed and thereafter

taking up the matter is not entitled to any relief.

13.10. In view thereof, I am of the considered opinion that the lackadaisical conduct of the Petitioner disentitles him from any remedy at the hands of this Court."

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13.79. Learned senior counsel, placing reliance upon the judgment of this Court in R. Sampath v. State of Karnataka by its Secretary and Others, submits that the principles laid down in the said decision directly govern the present case and decisively answer the question of limitation and finality.

13.80. In R. Sampath, this Court examined a situation where a document presented for registration had been refused registration, a pending number had been assigned, and yet the party concerned did not challenge the refusal within the statutory period. After the lapse of several years, the petitioner approached the Court seeking directions for registration.

13.81. This Court held that the cause of action arose on the date of refusal itself. The statutory remedy under Section 72 of the Registration

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Act was required to be invoked within thirty days. Having failed to do so, the petitioner could not, after years of inaction, seek to revive the matter. This Court further observed that a party who keeps a document pending without either complying with requirements or challenging refusal within the time prescribed cannot subsequently seek indulgence. The conduct of remaining inactive disentitles the party from relief.

13.82. Learned Senior counsel submits that the factual matrix in the present case is strikingly similar. The refusal order was passed on 10.11.2000. The statutory remedy was available under Section 72. Yet, no appeal was filed within thirty days. The appeal came to be filed only on 18.08.2005, nearly five years later. Applying the reasoning in R. Sampath, the cause of action arose in 2000. The failure

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to act within the prescribed period rendered
the refusal final.

13.83. He submits that this Court has already
declared that indolent conduct and failure to
pursue statutory remedies in time is fatal. The
principle of finality cannot be defeated by
belated attempts at revival.

13.84. Learned Senior counsel then addresses the
submission advanced on the other side
regarding a clarification issued by the
Inspector General of Registration on
02.08.2001, allegedly directing that documents
kept pending for want of Income Tax clearance
prior to 01.06.2001 be registered.

13.85. He submits that such clarification is wholly
inapplicable to the present case for a
fundamental reason. The clarification
concerned documents that were "pending". In
the present case, the Sub-Registrar had

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already passed a formal order refusing

registration on 10.11.2000. Once refusal had been recorded, the document ceased to be pending in law. Therefore:

13.85.1. A clarification relating to pending

documents cannot revive a concluded refusal.

13.85.2. An administrative circular cannot

override statutory limitation.

13.85.3. An executive instruction cannot

create a fresh cause of action.

13.86. He submits that the clarification cannot be relied upon to bypass Section 72 or to extend limitation beyond what the statute permits.

13.87. Learned counsel lastly submits that the surrounding circumstances give rise to serious doubt regarding the bona fides of the proceedings. He points out that:

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13.87.1. The impugned appellate order was

passed on 31.10.2009 at about 3:30 p.m.

13.87.2. On the very same day, the sale

deed was registered in the office of

Respondent No.2.

13.87.3. The office of Respondent No.2 is located approximately 15 kilometres away.

13.87.4. Considering the traffic conditions prevalent in Bengaluru and the working hours of the registration office, it would have been practically improbable for the order to be received, acted upon, and registration completed within such a short span of time on the same day.

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13.88. Learned Senior counsel submits that this unusual haste and sequence of events give rise to a legitimate apprehension of collusion between the official respondents and Respondent Nos.3 and 4. He contends that the registration appears to have been pre-arranged and mechanically executed, rather than processed in the ordinary course of administrative functioning.

13.89. On a cumulative consideration of:

13.89.1. The statutory limitation under
Section 72,

13.89.2. The absence of power to condone
delay,

13.89.3. The binding ratio of R. Sampath,

13.89.4. The inapplicability of the clarification
dated 02.08.2001,

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13.89.5. The unexplained speed with which
registration was effected on
31.10.2009,

13.89.6. The failure of Respondent No.1 to
consider limitation and material
evidence,

13.90. Learned Senior counsel submits that the
impugned order dated 31.10.2009 cannot be
sustained in law.

13.91. For all the above grounds, he submits that the
petition is required to be allowed and the
impugned order dated 31.10.2009 be set aside
and the registration of the sale deed made in
pursuance of the said order dated 31.10.2009
be cancelled.

14. Sri.Ashok Haranahalli, learned Senior Counsel appearing for respondent Nos.3 and 4 would submit as under:

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14.1. Learned Senior Counsel submits that Sri Kuppuswamy Naidu, who had acquired an extent of 3 acres and 29 guntas of land under a partition, agreed to sell 81 guntas thereof to the father of Respondent Nos.3 and 4. A sale deed was duly executed between the parties and was presented for registration before the Sub-Registrar, Bengaluru, on 18.02.1988.

14.2. However, at the time of presentation, the Income Tax Clearance Certificate required under Section 230A of the Income Tax Act, 1961 was not produced. On that ground alone, the Sub-Registrar declined to complete registration and the document was kept pending.

14.3. The document was not finally rejected at that stage but was retained in the pending register. The refusal was not on the ground of denial of execution or defect in title, but purely for non-

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production of a statutory certificate. Thus, according to him, the transaction remained incomplete only on account of a procedural requirement under the Income Tax Act.

14.4. The stand taken by Respondent No.2, that notices were issued on two occasions calling upon the father of Respondent Nos.3 and 4 to produce the required certificate, is wholly incorrect.

14.5. No such notices were ever served upon the father of Respondent Nos.3 and 4. According to him:

14.5.1. There is no acknowledgment of service;

14.5.2. There is no proof of dispatch;

14.5.3. There is no documentary material demonstrating communication of the alleged notices;

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14.5.4. There is no evidence of actual receipt.

14.6. He contends that the assertion that the father of Respondent Nos.3 and 4 failed to respond to notices is unfounded and unsupported by cogent proof.

14.7. In matters affecting valuable immovable property rights, the burden lies upon the authority asserting service to establish that notices were duly issued and properly served. Mere recital in an affidavit or register entry is insufficient unless supported by proof of dispatch and acknowledgment. There is equally no material to show that the refusal order dated 10.11.2000 was ever communicated to the father of Respondent Nos.3 and 4.

14.8. He points out that:

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14.8.1. No acknowledgment bearing signature of the recipient has been produced.

14.8.2. No postal receipt or dispatch proof

has been placed on record.

14.8.3. No documentary evidence has been
furnished to show actual delivery.

14.9. The father of Respondent Nos.3 and 4 expired
on 03.08.2002. Respondent Nos.3 and 4
themselves are stated to be illiterate and are
also deaf and dumb. They have categorically
asserted that no notice or order was ever
received.

14.10. Once such categorical denial is made, the
burden shifts to the authority and the
Petitioners to demonstrate proper
communication of the refusal order. In the

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absence of proof of service, limitation cannot
begin to run.

14.11. According to him, unless communication of
refusal is established in accordance with law,
the question of computing thirty days under
Section 72 of the Registration Act does not
arise.

14.12. He therefore submits that the appeal filed by
Respondent Nos.3 and 4 cannot be termed as

barred by limitation, as the cause of action arose only upon their coming to know of the refusal order. In the absence of proper service, the alleged finality of the refusal cannot be sustained.

14.13. In this regard, he relies upon the decision of this Court in the case of SRI. DEVEGOWDA AND OTHERS Vs. SRI. ASHOKANAYAR AND
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OTHERS⁶, more particularly, para 12.9 thereof, which is reproduced here under for easy reference.

"Thus, I am of the considered opinion that the presumption under Section 27 would only arise, if the article is dispatched to the proper address of the addressee, the article is properly and duly stamped and sent by RPAD. For the purpose of raising this presumption, if these aspects are not placed on record, then no such presumption could be raised or invoked."

14.14. By relying on Devegowda he submits that the said judgment authoritatively clarifies the circumstances under which the presumption of service under Section 27 of the General Clauses Act, 1897 can be invoked.

14.15. In Devegowda, this Court examined the scope of Section 27 of the General Clauses Act, which provides that where a document is required to be served by post, service shall be deemed to be effected by properly addressing,

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prepaying and posting by registered post, unless the contrary is proved. This Court held that the statutory presumption does not arise automatically. The party seeking to rely upon the presumption must establish foundational facts, namely:

14.15.1. That the article was properly addressed to the correct address of the addressee;

14.15.2. That it was duly stamped;

14.15.3. That it was sent by registered post acknowledgment due (RPAD) or an equivalent mode that ensures proof of dispatch;

14.15.4. That dispatch particulars are

demonstrably available on record.

14.16. Only upon establishing these foundational facts

can the presumption under Section 27 be

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raised. In the absence of such proof, the

presumption cannot be invoked.

14.17. In the present case, the entire edifice of the

Petitioners' argument on limitation rests upon

the assertion that the refusal order dated

10.11.2000 was communicated to the father of

Respondent Nos.3 and 4 and/or his legal

representatives. However, according to him:

14.17.1. No postal receipt has been
produced.

14.17.2. No RPAD acknowledgment card is
on record.

14.17.3. No dispatch register extract showing
proper addressing has been placed
before the Court.

14.17.4. No material has been produced to
establish that the refusal order was

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in fact sent to the correct residential
address.

14.17.5. There is no documentary evidence
to demonstrate compliance with
statutory requirements for service.

14.18. The mere entry in Book-II or a bald assertion
in an affidavit is insufficient to attract the
presumption under Section 27. Unless it is
shown that the refusal order was properly
addressed, duly stamped, and dispatched by
registered post acknowledgment due, the
presumption of service cannot arise.

14.19. Limitation under Section 72 of the Registration
Act begins to run only from the date of
communication of the refusal order. If
communication itself is not established, there
being no knowledge, the computation of
limitation does not commence.

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14.20. Respondent Nos.3 and 4 have categorically
stated that neither their father nor they

received any such communication. In such circumstances, the burden squarely lies on the Petitioners and the authorities to establish due service.

14.21. In the absence of proof of dispatch in accordance with law, the refusal order cannot be treated as having been communicated. Therefore, the contention that the appeal was barred by limitation is untenable.

14.22. He accordingly submits that the reliance placed by the Petitioners on limitation is misconceived, since the foundational requirement of proving communication of the refusal order has not been satisfied.

14.23. He relies upon the decision in the case of

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ANOTHER7, more particularly, para 16 thereof, which is reproduced hereunder for easy reference:

"16. The learned Judges of the Division Bench of the High Court ought to have seen that there can be no legal impediment for the Department to make preparations ahead of the period of expiry of the one year contract given in favour of the

plaintiff to facilitate the entrustment of the task of collecting the toll in question for the period subsequent thereto, to a newly selected contractor at competitive rates. The Division Bench further overlooked the vital legal proposition that the Memorandum dated 11.3.1998 of the Joint Secretary cannot, per se, have the legal consequence of bringing into existence an extended period of contract and that too for 30 years though said to be renewable periodically every three years. On a proper consideration of the Memorandum dated 11.3.1998, which was also stated to have been never communicated to the plaintiff, and the subsequent Memorandum dated 24.8.1999 of the very Joint Secretary, who issued the earlier Memo, that Memorandum dated 11.3.1998 contained only certain proposals and not any final orders of extension of renewal of the contract as assumed in the judgment under challenge. Paragraph 15 of the Memorandum dated 11.3.1998, which has been relied upon as the basis for claiming an extended period of contract, itself has been misconstrued out of context though by itself, it cannot have the effect of bringing into existence such an extended term of

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contract to warrant or justify the grant of the directions of the nature in the present case. Even assuming for consideration without accepting that paragraph 15 of the Memorandum dated 11.3.1998 had any effect, it can by no stretch of imagination be construed to bring into existence ipso facto an extended period of contract beyond the one year period for which alone the contract had been given to the plaintiff in this case. An order passed but retained in file without being communicated to the plaintiff can have no force or authority whatsoever and the same has no valid existence in the eye of law or claim to have come into operation and effect. No reliance can be placed on the same to even assert a claim based

on its contents. If its utility depended upon a decision to be taken on the performance of the plaintiff by the Competent Authority, neither the authority could be compelled to take a decision nor any concrete rights could be said to have been acquired by the plaintiff, to warrant the grant of the type of directions given in this case. It is really surprising that the discretionary power to grant injunction, be it of prohibitory or mandatory nature, has been availed of to bring into existence and force upon the State a new contract, which could never have been the intention of the State itself."

14.24. By relying on M.R. Mondal, his submission is that an order that is not communicated has no legal efficacy. In M.R. Mondal, the Hon'ble Supreme Court was dealing with the question whether a memorandum issued internally by

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the Government, which was never communicated to the concerned party, could create enforceable rights or extend contractual obligations and in categorical terms held that:

14.24.1. An order passed but retained in file, without being communicated to the concerned party, has no force or authority in law.

14.24.2. Such an order cannot be said to

have come into operation.

14.24.3. It has no valid existence in the eye
of law.

14.24.4. No rights can be claimed on the
basis of such an uncommunicated
order.

14.25. The Hon'ble Supreme Court emphasised that
communication is an essential component of a
legally effective order. Until an order is made

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known to the person affected, it does not
attain operative force. Mere existence in
departmental files does not confer legal validity
or enforceability.

14.26. Learned Senior Counsel submits that the
principle enunciated in M.R. Mondal squarely
applies to the present matter. In the instant
case:

14.26.1. The refusal order dated 10.11.2000
is said to have been entered in
Book-II.

14.26.2. The Petitioners rely upon such entry
and an affidavit to contend that the

order was issued.

14.26.3. However, there is no cogent proof

that the refusal order was ever

communicated to the father of

Respondent Nos.3 and 4.

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14.27. He submits that unless communication of the refusal order is established:

14.27.1. The order cannot be treated as

having come into force.

14.27.2. Limitation cannot begin to run.

14.27.3. No finality can attach to such refusal.

14.28. An internal entry in the records of the Sub-

Registrar, if not communicated to the concerned party, remains in the realm of administrative notation. It does not crystallize into a legally operative decision.

14.29. The entire edifice of the Petitioners' argument on limitation presupposes valid communication of the refusal order. If, as laid down in M.R. Mondal, an uncommunicated order has no legal existence, then:

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14.29.1. The refusal order cannot be treated
as effective.

14.29.2. The statutory period of thirty days
under Section 72 cannot
commence.

14.29.3. The appeal filed by Respondent
Nos.3 and 4 cannot be dismissed as
barred by limitation.

14.30. He relies upon the decision in the case of THE
ASSISTANT TRANSPORT COMMISSIONER,
LUCKNOW AND OTHERS V. NAND SINGH⁸,
more particularly, para 2 thereof, which is
reproduced hereunder for easy reference.

"2. In our opinion, the judgment of the High Court
is right and cannot be interfered with by this
Court. Apart from the reasons given by this Court
in the earlier judgment to the effect that the order
must be made known either directly or
constructively to the party affected by the order in
order to enable him to prefer an appeal if he so
likes, we may give one more reason in our
judgment and that is this: It is plain that mere

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writing an order in the file kept in the office of the Taxation Officer is no order in the eye of law in the sense of affecting the rights of the parties for whom the order is meant. The order must be communicated either directly or constructively in the sense of making it known, which may make it possible for the authority to say that the party affected must be deemed to have known the order. in a given case, the date of putting the order in communication under certain circumstances may be taken to be the date of the communication of the order or the date of the order but ordinarily and generally speaking, the order would be effective against the person affected by it only when it comes to his knowledge either directly or constructively, otherwise not. On the facts stated in the judgment of the High Court, it is clear that the respondent had no means to know about the order of the Taxation Officer rejecting his prayer until and unless he received his letter on October 29, 1964. Within the meaning of Section 15 of the U.P. Motor Vehicles Taxation Act that was the date of the order which gave the starting point for preferring an appeal within 30 days of that date."

14.31. He submits that in Nand Singh, the Hon'ble

Supreme Court considered whether an order

recorded in the office file of a statutory

authority, but not communicated to the

affected party, could be treated as operative

for purposes of limitation. The Hon'ble

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Supreme Court held in clear and emphatic

terms that:

14.31.1. Mere writing of an order in the file is

not an order in the eye of law so far

as it affects the rights of the parties.

14.31.2. An order becomes effective only

when it is made known to the

person affected, either directly or constructively.

14.31.3. Limitation for preferring an appeal

commences only when the order

comes to the knowledge of the affected party.

14.31.4. Knowledge may be actual or

deemed (constructive), but there

must be some legally sustainable

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basis to hold that the party had an

opportunity to know the order.

14.32. The Hon'ble Supreme Court observed that

unless the order is communicated in such a

manner as to enable the affected party to

challenge it, it cannot be treated as having legal effect. Thus, communication is not a mere procedural formality; it is a condition precedent to the legal efficacy of an order.

14.33. The Petitioners' entire case on limitation rests on the premise that the refusal order dated 10.11.2000 was communicated to the father of Respondent Nos.3 and 4. In the absence of proof of communication, the refusal order remained confined to the office file of the Sub-Registrar. Applying the ratio in Nand Singh, such an order cannot be treated as legally effective against the affected party Learned Senior Counsel further submits that knowledge

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can be either direct (actual receipt) or constructive (deemed knowledge by proper service). However, neither has been established in the present case. Respondent Nos.3 and 4 have categorically stated that:

14.33.1. Their father did not receive any such notice or refusal order.

14.33.2. They themselves had no knowledge

of such order until much later.

14.34. Unless the authorities establish proper dispatch and service in accordance with law, constructive knowledge cannot be presumed.

14.35. Under Section 72 of the Registration Act, limitation for filing appeal must necessarily be computed from the date on which the refusal order is communicated or comes to the knowledge of the affected party. In the present case, as service of notice and communication

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of the refusal order have not been established either directly or constructively, the contention that Respondent Nos.3 and 4 are barred by limitation is unsustainable. He accordingly submits that the appeal was competent and that the plea of limitation deserves to be rejected.

14.36. He relies upon the decision in the case of SARAL WIRE CRAFT PRIVATE LIMITED VS. COMMISSIONER OF CUSTOMS, CENTRAL EXCISE AND SERVICE TAX AND OTHERS⁹, more particularly, para 9 thereof, which is

reproduced hereunder for easy reference:

9. It is in these circumstances that we are of the clear conclusion that a miscarriage of justice has taken place, in that the authorities/courts below have failed to notice the specific language of Section 37-C(1)(a) of the Act which requires that an order must be tendered on the person concerned or his authorised agent, in other words, on no other person, to ensure efficaciousness. We must immediately recall the decision in Taylor vs. Taylor, (1875) LR 1 Ch. D 426, rendered venerable

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by virtue of its jural acceptance and applicable for over a century. It was approved by the Privy Council in Nazir Ahmad v. King Emperor (1935-36) 63 IA 372 and was subsequently applied in Rao Shiv Bahadur Singh v. State of Vindhya Pradesh, AIR 1954 SC 322, State of UP v. Singhara Singh AIR 1964 SC 358, Babu Verghese v. Bar Council of Kerala (1999) 3 SCC 422 and more recently in Hussein Ghadially v. State of Gujarat (2014) 8 SCC 425. As observed by this Court in Babu Verghese(SCC p.432, para 31) "31.it is the basic principle of law long settled that if the manner of doing a particular act is prescribed under any statute, the act must be done in that manner or not at all."

14.37. Relying on Saral Wire Craft Private he

submits that in Saral Wire Craft, the Hon'ble Supreme Court was considering Section 37-C(1)(a) of the Central Excise Act, which prescribed the manner in which orders are to be served. The provision required that

an order must be tendered to the person
concerned or to his authorised agent.

14.38. The Hon'ble Supreme Court observed that
where a statute prescribes the manner in
which an act is to be performed, it must be
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performed in that manner or not at all. The
Hon'ble Supreme Court reiterated the long-
standing principle laid down in Taylor v.
Taylor, approved in Nazir Ahmad v. King
Emperor and consistently followed thereafter,
that statutory requirements governing
procedure are mandatory and must be strictly
complied with.

14.39. The Hon'ble Supreme Court held that failure to
adhere to the prescribed mode of service
vitiates the action, since communication of the
order is foundational to its legal efficacy.

14.40. Learned Senior Counsel submits that the
Registration Act, read with the relevant Rules,
imposes a statutory duty upon the Sub-
Registrar to communicate an order of refusal
to the concerned party. He submits that:

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14.40.1. The refusal order dated 10.11.2000
was required to be communicated in
the manner prescribed.

14.40.2. Communication must be effected in
accordance with law.

14.40.3. The burden lies upon the authority
to establish that such
communication was properly made.

14.41. By the time proceedings were being pursued
subsequently, the father of Respondent Nos.3
and 4 had expired on 03.08.2002. If the
authorities intended to rely upon the refusal
order and its consequences, it was incumbent
upon them to communicate the order to the
legal representatives in accordance with law.

14.42. Without prejudice to the broader contention he
submits that Respondent Nos.3 and 4 were not
impleaded in earlier proceedings after the

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death of their father, thereby depriving them of an opportunity to participate. Learned Senior Counsel emphasises that the principle reiterated in Saral Wire Craft is of general application:

14.42.1. Where a statute prescribes the mode of communication,

14.42.2. The authority must strictly adhere to that mode,

14.42.3. Non-compliance renders the action ineffective.

14.43. Mere internal entry, assumption of dispatch, or recital in an affidavit does not satisfy statutory requirements. If the law mandates service upon the concerned person or his authorised representative, it must be shown that service was effected in that precise manner.

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14.44. He therefore submits that in the absence of strict compliance, the refusal order cannot be treated as having been effectively communicated. Consequently, limitation

cannot be computed from an uncommunicated or improperly served order. The refusal order dated 10.11.2000 cannot be relied upon to non-suit Respondent Nos.3 and 4 on the ground of limitation, as the mandatory requirement of communication in the prescribed manner has not been satisfied.

14.45. Though the refusal order bears the date 10.11.2000, the same was never communicated to Respondent Nos.3 and 4. In the absence of communication, limitation cannot begin to run. He submits that Respondent Nos.3 and 4 became aware of the refusal only much later, and the appeal was

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filed promptly thereafter. Hence, there is no delay in the eye of law.

14.46. Learned Senior Counsel further submits that

Respondent Nos.3 and 4 are deaf and dumb.

In such circumstances:

14.46.1. The presumption of constructive knowledge cannot be lightly drawn.

14.46.2. The standard of proof for

establishing service or awareness

must be stricter.

14.46.3. Mere assumption of knowledge based on internal record entries is impermissible.

14.47. He submits that constructive knowledge presupposes circumstances where a reasonable person could be deemed to have become aware. In the case of persons with

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communication disabilities, such presumption must be applied with caution.

14.48. Without prejudice to the above contention that there is in fact no delay, learned Senior Counsel submits that Section 5 of the Limitation Act, 1963 is applicable even to proceedings arising under special statutes, unless expressly excluded. He submits that:

14.48.1. The Limitation Act applies to special statutes by virtue of Section 29(2).

14.48.2. Unless the special statute expressly bars the application of Section 5, condonation of delay remains

available.

14.48.3. The Registration Act does not contain any express exclusion of the Limitation Act.

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14.49. He therefore contends that even assuming there was delay, the appellate authority was competent to condone the same upon sufficient cause being shown.

14.50. In this regard, he relies upon the decision in the case of MANGU RAM Vs. MUNICIPAL CORPORATION OF DELHI¹⁰, More particularly, para 6 thereof, which is reproduced hereunder for easy reference.

"6. The question which arose for consideration in Kaushalya Rani's case(supra) was apparently the same as in the present case, namely, whether the time limit of sixty days prescribed in sub-section (4) of Section 417 for making an application for special leave under sub-section (3) of that section could be extended by invoking Section 5 of the Indian Limitation Act, 1908. This Court held that sub-section (4) of Section 417 laid down a special period of limitation for an application by a complainant for special leave to appeal against an order of acquittal and "in that sense, this rule of sixty days bar is a special law, that is to say, a rule of limitation which is specially provided for in the Code itself which does not ordinarily provide for a period of limitation for appeals or applications. This Court pointed out that since "the special rule of

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limitations laid down in sub-section (4) of Section 417 of the Code is a special law of limitation governing appeals by private prosecutors. There is no difficulty in coming to the conclusion that Section 5 of the Limitation Act is wholly out of the way, in view of section 29(2)(b) of the Limitation Act." The applicability of Section 5 of the Indian Limitation Act, 1908 was thus held to be excluded in determining the period of limitation of sixty days prescribed in sub-section (4) of Section 417 by reason of Section 29(2)(b) of that Act, which provided in so many terms that "for the purpose of determining any period of limitation prescribed for any suit, appeal or application by any special or local law, the remaining provisions of this Act" that is sections other than Sections 4, 9 to 18 and 22 "shall not apply." Now, there can be no doubt that if the present case were governed by the Indian Limitation Act, 1908, this decision would wholly apply and the Municipal Corporation of Delhi would not be entitled to invoke the aid of Section 5 of that Act for the purpose of extending the period of limitation of sixty days prescribed in sub-section (4) of Section 417 for an application by a complainant for special leave to appeal against an order of acquittal. But the Indian Limitation Act, 1908 has clearly no application in the present case, since that Act is repealed by the Limitation Act, 1963 which came into force with effect from January 1, 1964 and the present case must, therefore, be decided by reference to the provisions of the Limitation Act, 1963."

14.51. Learned Senior Counsel, in support of his

submission that Section 5 of the Limitation Act

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is applicable even in proceedings arising under special statutes unless expressly excluded, places reliance upon the decision of the Hon'ble Supreme Court in Mangu Ram v. Municipal Corporation of Delhi, In Mangu Ram, the Supreme Court examined whether Section 5 of the Limitation Act could be invoked to extend the period prescribed under a special provision of the Code of Criminal Procedure for filing an application for special leave to appeal against acquittal.

14.52. The Hon'ble Supreme Court distinguished between the position under the Indian Limitation Act, 1908 and the Limitation Act, 1963. Under the 1908 Act, Section 29(2)(b) expressly excluded the application of Section 5 in cases where a special or local law prescribed its own period of limitation.

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14.53. However, under the Limitation Act, 1963, the scheme was materially altered. Section 29(2) of the 1963 Act provides that where a special or local law prescribes a period of limitation different from the period prescribed in the Schedule, the provisions of Sections 4 to 24 (which include Section 5) shall apply, unless expressly excluded by such special or local law. The Hon'ble Supreme Court held that in the absence of express exclusion, Section 5 would apply even to proceedings governed by a special statute. Thus, the decision clarified that

14.53.1. The mere fact that a statute prescribes a special period of limitation does not automatically exclude Section 5.

14.53.2. Exclusion must be express or clearly implied.

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14.53.3. Under the 1963 Act, the legislative intent is to make Section 5 broadly applicable unless specifically barred.

14.54. Learned Senior Counsel submits that the

Registration Act prescribes a thirty-day period under Section 72 for filing an appeal against refusal of registration. However:

14.54.1. The Registration Act does not contain any express provision excluding the application of Section 5 of the Limitation Act.

14.54.2. There is no language indicating that delay cannot be condoned.

14.54.3. There is no non obstante clause overriding the Limitation Act.

14.55. He therefore submits that by virtue of Section 29(2) of the Limitation Act, 1963, Section 5 applies to proceedings under Section 72 of the

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Registration Act. Even assuming, without admitting, that the appeal was filed beyond thirty days from knowledge of the refusal order, the District Registrar had the power to condone delay upon sufficient cause being shown.

14.56. Learned Senior Counsel submits that the authorities relied upon by the Petitioners,

which contend that Section 5 is inapplicable,
either:

14.56.1. Concern statutes which expressly

exclude condonation; or

14.56.2. Were decided in a context where

the statutory scheme clearly
indicated legislative intent to bar
extension.

14.57. He also relies upon the decision in the case of

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AND OTHERS¹¹, more particularly, para 16

thereof, which is reproduced hereunder for
easy reference.

"16. In the process, the Court also explained the
expression 'expressly excluded' appearing
in Section 29(2) of the Limitation Act, 1963 in the
following manner:

"34. Though, an argument was raised based
on Section 29 of the Limitation Act, even
assuming that Section 29(2) would be attracted,
what we have to determine is whether the
provisions of this Section are expressly excluded
in the case of reference to the High Court.

35. It was contended before us that the words
"expressly excluded" would mean that there must
be an express reference made in the special or

local law to the specific provisions of the Limitation Act of which the operation is to be excluded. In this regard, we have to see the scheme of the special law which here in this case is the Central Excise Act. The nature of the remedy provided therein is such that the legislature intended it to be a complete code by itself which alone should govern the several matters provided by it. If, on an examination of the relevant provisions, it is clear that the provisions of the Limitation Act are necessarily excluded, then the benefits conferred therein cannot be called in aid to supplement the provisions of the Act. In our considered view, that even in a case where the special law does not exclude the provisions of Sections 4 to 24 of the Limitation Act by an express reference, it would nonetheless be open to the court to examine whether and to what extent, the nature of those provisions or the nature of the subject-matter and

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scheme of the special law exclude their operation. In other words, the applicability of the provisions of the Limitation Act, therefore, is to be judged not from the terms of the Limitation Act but by the provisions of the Central Excise Act relating to filing of reference application to the High Court."

14.58. Learned Senior Counsel placing reliance upon

the judgment of the Hon'ble Supreme Court in

Patel Brothers v. State of Assam and

Others, elaborates upon the interpretation of

Section 29(2) of the Limitation Act, 1963 and

the expression "expressly excluded". In Patel

Brothers, the Supreme Court examined

whether the provisions of Sections 4 to 24 of the Limitation Act would apply to a special statute, in that case the Central Excise Act.

The Court explained that:

14.58.1. The phrase "expressly excluded" does not necessarily require a specific reference in the special statute stating that the Limitation Act shall not apply.

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14.58.2. The Court must examine the scheme, structure, and subject-matter of the special enactment.

14.58.3. If, upon such examination, it is evident that the special law constitutes a complete code and the legislative intent is to exclude the operation of the Limitation Act, then such exclusion can be inferred.

14.58.4. Conversely, unless such exclusion is clearly discernible from the statutory scheme, the provisions of Sections 4 to 24 of the Limitation

Act would apply by virtue of Section
29(2).

14.59. The Hon'ble Supreme Court clarified that the
question is not to be decided by reading the
Limitation Act in isolation, but by analysing
whether the special law, by necessary
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implication, excludes its application. Learned
Senior Counsel submits that when Section 72
of the Registration Act is examined:

14.59.1. It prescribes a period of thirty days
for filing an appeal.

14.59.2. It does not contain any provision
stating that delay cannot be
condoned.

14.59.3. It does not declare that the
Limitation Act is inapplicable.

14.59.4. It does not contain language
indicating finality beyond the
prescribed period.

14.59.5. It does not create a rigid outer
boundary beyond which the remedy
is extinguished.

14.60. He submits that the Registration Act cannot be

said to constitute a complete code in the sense

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of excluding the operation of Sections 4 to 24

of the Limitation Act. The statute merely

prescribes a limitation period; it does not

expressly or impliedly bar condonation. Thus,

applying the principle laid down in Patel

Brothers, Section 5 of the Limitation Act

would apply to proceedings under Section 72,

since there is no express or necessary

exclusion.

14.61. Learned Senior Counsel further submits that

even assuming there was delay, the principles

governing condonation of delay are well

settled. Courts have consistently held that:

14.61.1. The expression "sufficient cause"

should receive a liberal

construction.

14.61.2. Technicalities should not defeat

substantial justice.

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14.61.3. When no malafides or deliberate
inaction are shown, delay ought
ordinarily to be condoned.

14.62. He submits that Respondent Nos.3 and 4,
being illiterate and differently abled persons,
and having no knowledge of the refusal order,
cannot be accused of deliberate delay. If delay
is found, it deserves to be condoned in the
interest of justice. Learned Senior Counsel
accordingly submits that:

14.62.1. Section 29(2) of the Limitation Act
makes Sections 4 to 24 applicable
to special statutes unless excluded.

14.62.2. The Registration Act does not
expressly or impliedly exclude
Section 5.

14.62.3. Therefore, the appellate authority
was competent to condone delay.

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14.62.4. Even otherwise, the explanation

furnished constitutes sufficient
cause.

14.62.5. The plea of limitation should not
defeat substantive rights.

14.63. He therefore contends that the appeal
preferred by Respondent Nos.3 and 4 was
maintainable and rightly entertained.

14.64. In this regard, he relies upon the decision in
the case of DHIRAJ SINGH (DEAD)
THROUGH LEGAL REPRESENTATIVES AND
OTHERS Vs. STATE OF HARYANA AND
OTHERS¹², more particularly, para 16 thereof,
which is reproduced hereunder for easy
reference.

"16. The principles regarding condonation of
delay particularly in land acquisition matters,
have been enunciated in Collector(LA) V.
Katiji, 1987(2) SCC 107, wherein it is stated in
para 3 as under:-

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"3. The legislature has conferred the power to
condone delay by enacting Section 5 of the Limitation
Act of 1963 in order to enable the courts to do
substantial justice to parties by disposing of matters
on "merits". The expression "sufficient cause"
employed by the legislature is adequately elastic to
enable the courts to apply the law in a meaningful
manner which subserves the ends of justice - that

being the life-purpose for the existence of the institution of courts. It is common knowledge that this Court has been making a justifiably liberal approach in matters instituted in this Court. But the message does not appear to have percolated down to all the other courts in the hierarchy. And such a liberal approach is adopted on principle as it is realised that:

(1). Ordinarily a litigant does not stand to benefit by lodging an appeal late.

(2). Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this when delay is condoned the highest that can happen is that a cause would be decided on merits after hearing the parties.

(3). "Every day's delay must be explained" does not mean that a pedantic approach should be made. Why not every hour's delay, every second's delay? The doctrine must be applied in a rational common sense pragmatic manner.

(4). When substantial justice and technical considerations are pitted against each other, cause of substantial justice deserves to be preferred for the other side cannot claim to have vested right in injustice being done because of a non-deliberate delay.

(5). There is no presumption that delay is occasioned deliberately, or on account of culpable negligence, or on account of mala fides. A litigant

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does not stand to benefit by resorting to delay. In fact he runs a serious risk.

(6). It must be grasped that judiciary is respected not on account of its power to legalize injustice on technical grounds but because it is capable of removing injustice and is expected to do so."

14.65. Learned Senior Counsel in further support of

his plea that the appeal cannot be non-suited

on technical grounds of limitation, places
reliance upon the judgment of the Hon'ble
Supreme Court in Dhiraj Singh (Dead)
through Legal Representatives and Others
v. State of Haryana and Others. In Dhiraj
Singh, the Supreme Court referred to and
reaffirmed the well-settled principles laid down
in Collector (Land Acquisition) v. Katiji,
emphasising the need for a liberal and justice-
oriented approach in matters of condonation of
delay. The Hon'ble Supreme Court reiterated
that:

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14.65.1. Section 5 of the Limitation Act has
been enacted to enable courts to do
substantial justice.

14.65.2. The expression "sufficient cause" is
elastic and must receive a
meaningful construction.

14.65.3. Refusal to condone delay may
defeat meritorious claims at the
threshold.

14.65.4. When substantial justice and

technical considerations are in
conflict, substantial justice must
prevail.

14.65.5. There is no presumption that delay
is deliberate or mala fide.

14.65.6. The judiciary exists not to legalise
injustice on technical grounds but to
remove injustice.

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14.66. The Hon'ble Supreme Court cautioned against
a pedantic approach in computing delay and
emphasised that procedural rules should serve
justice, not obstruct it. Learned Senior Counsel
submits that even assuming for argument's
sake that the appeal was filed beyond the
prescribed thirty-day period, the explanation
furnished by Respondent Nos.3 and 4
constitutes sufficient cause. He submits that:

14.66.1. Respondent Nos.3 and 4 came to
know of the refusal order only in
July 2005.

14.66.2. They filed an affidavit in August
2005 explaining the circumstances.

14.66.3. They acted promptly upon gaining
knowledge.

14.66.4. There was no deliberate delay.

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14.66.5. They stand to gain nothing by
prolonging proceedings.

14.67. He emphasises that Respondent Nos.3 and 4
are persons with disabilities (deaf and dumb),
and that their socio-economic background
must also be borne in mind while examining
delay.

14.68. According to him, limitation is not meant to
destroy substantive rights but to ensure
diligence. Where a party has acted bona fide
and without mala fides, courts and authorities
must adopt a liberal approach.

14.69. The doctrine of limitation is procedural in
nature. It regulates the remedy but does not
extinguish substantive rights unless the statute
expressly so provides.

14.70. He contends that the appellate authority was
justified in preferring a decision on merits

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rather than shutting the doors on Respondent Nos.3 and 4 on a technical plea of delay. He further submits that the explanation offered was reasonable and plausible, and there is no material to suggest that the delay was intentional or motivated.

14.71. He relies upon the decision in the case of

M.P.STEEL CORPORATION Vs.
COMMISSIONER OF CENTRAL EXCISE¹³,

more particularly, para 35 thereof, which is reproduced hereunder for easy reference.

35. This judgment is in line with a large number of authorities which have held that Section 14 should be liberally construed to advance the cause of justice - see: Shakti Tubes Ltd. v. State of Bihar, (2009) 1 SCC 786 and the judgments cited therein. Obviously, the context of Section 14 would require that the term "court" be liberally construed to include within it quasi-judicial Tribunals as well. This is for the very good reason that the principle of Section 14 is that whenever a person bonafide prosecutes with due diligence another proceeding which proves to be abortive because it is without jurisdiction, or otherwise no decision could be rendered on merits, the time taken in such proceeding ought to be excluded as otherwise the person who has approached the Court in such proceeding would be

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penalized for no fault of his own. This judgment does not further the case of Shri Viswanathan in any way. The question that has to be answered in this case is whether suits, appeals or applications referred to by the Limitation Act are to be filed in courts. This has nothing to do with "civil proceedings" referred to in Section 14 which may be filed before other courts or authorities which ultimately do not answer the case before them on merits but throw the case out on some technical ground. Obviously the word "court" in Section 14 takes its colour from the preceding words "civil proceedings". Civil proceedings are of many kinds and need not be confined to suits, appeals or applications which are made only in courts *stricto sensu*. This is made even more clear by the explicit language of Section 14 by which a civil proceeding can even be a revision which may be to a quasi-judicial tribunal under a particular statute. Whether the Principle of Section 14 would apply to an appeal filed under Section 128 Customs Act?."

14.72. Learned Senior Counsel placing reliance upon

the judgment of the Hon'ble Supreme Court in

M.P. Steel Corporation v. Commissioner of

Central Excise, contends that the provisions

of the Limitation Act must receive a liberal and

purposive construction. In M.P. Steel

Corporation, the Hon'ble Supreme Court

considered the scope and applicability of

Section 14 of the Limitation Act, 1963. Section

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14 enables exclusion of time spent in bona fide prosecuting proceedings before a court or authority which ultimately proves to be without jurisdiction or otherwise incapable of adjudicating the matter on merits. The Hon'ble Supreme Court held that:

14.72.1. Section 14 must be liberally construed to advance the cause of justice.

14.72.2. The expression "court" occurring in Section 14 must not be narrowly interpreted.

14.72.3. The term would include quasi-judicial tribunals and statutory authorities where civil proceedings are pursued.

14.72.4. The underlying principle of Section 14 is that a litigant acting bona fide

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and with due diligence should not be penalised for having approached an incorrect forum.

14.73. The Hon'ble Supreme Court observed that the provision is designed to ensure that a party who has pursued remedies diligently does not suffer on account of technical defects or jurisdictional errors.

14.74. If the authorities failed to communicate refusal or failed to complete the process in accordance with law, Respondent Nos.3 and 4 cannot be penalised for such administrative lapses.

14.75. Respondent Nos.3 and 4 have been consistently asserting their rights under the sale deed executed in 1988. The non-registration occurred due to statutory requirements then prevailing under Section 230A of the Income Tax Act. Once that provision stood omitted, the impediment

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ceased. He submits that if limitation is applied in a rigid and technical manner, the substantive rights flowing from a concluded sale transaction would be extinguished without adjudication on merits. According to him, justice demands that the matter be examined

substantively rather than dismissed on
technical grounds of limitation.

14.76. Learned Senior Counsel next addresses the
legality of the refusal itself and submits that
the Sub-Registrar could not have refused
registration of the document once it was duly
executed and presented in compliance with the
provisions of the Registration Act, 1908. His
submission is that the function of the Sub-
Registrar at the stage of registration is
administrative and procedural in nature. The
Sub-Registrar is not vested with authority to
adjudicate disputes relating to title, validity of

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transaction, or competing claims. His
jurisdiction is confined to ensuring compliance
with the procedural requirements stipulated
under the Registration Act. If:

14.76.1. The document is presented by the
executant,

14.76.2. The executant admits execution,

14.76.3. The document is duly stamped,

14.76.4. The formalities under Sections 32,

34 and allied provisions of the
Registration Act are complied with,

then, in the absence of any specific statutory
prohibition, the Sub-Registrar cannot refuse
registration.

14.77. In this regard, he relies upon the decision of

this Court in the case of S. SREENIVASA RAO

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Vs. SUB-REGISTRAR (HEADQUARTERS)14,

more particularly, para 6 thereof, which is
reproduced hereunder for easy reference.

"6. Coming to the next question as to whether the Registrar of Societies could have issued a direction to the Sub-Registrar not to register a particular document, learned Counsel for the respondents - 3 to 5, 7 and 10, could not point out any provision either in the Karnataka Societies Registration Act, 1960 or the Rules framed thereunder or in the Registration Act, 1908, which authorised the Registrar of Societies to make such a direction. We also find no provision in the Registration Act, 1908 which obliges the Sub-Registrar to act upon any such direction and/or to investigate at the stage of registration of a document itself, the title of the party executing the document. We are, therefore of the view that if a document is presented for registration by the executant, and in doing so, the executant complies with all the provisions of Registration Act, 1908, it is not open to the Sub-Registrar to refuse registration of the document unless he exercises that discretion pursuant to any provision in the Registration Act, 1908 or any other law or Rule having the force of law. The mere registration of a document is by itself

not a proof of its validity, neither does it follow that the executant had title to the property, he seeks to dispose of under the document. Matters such as relating to title have to be decided before the appropriate forum. If any person is interested in contending that any particular document executed and registered under the Registration Act, 1908 is invalid or illegal for any reason whatsoever, he is certainly at liberty to question the validity of the

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document, the title of the executant, and such other questions before the proper forum in an appropriate proceeding. Similarly, if it is sought to be contended in the instant case that the Trust Deed has been executed in contravention of the provision of the Karnataka Societies Registration Act, 1960 any person aggrieved may challenge the validity of the Trust Deed in a duly constituted proceeding. There is, however, no warrant for the proposition that the registration of the document itself can be prevented by directing the Sub-Registrar not to register the document. We are therefore of the view that the learned Single Judge was in error in holding that the direction issued by the Registrar of Societies to the Sub-Registrar was competent and consequently Annexure-D was also valid."

14.78. Learned Senior Counsel placing reliance on S.

Sreenivasa Rao v. Sub-Registrar

(Headquarters), submits that this Court in

the said decision has held that:

14.78.1. There was no provision empowering

the Registrar of Societies to direct

the Sub-Registrar not to register a
document.

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14.78.2. The Sub-Registrar is not required to
investigate title at the stage of
registration.

14.78.3. Registration of a document does not
confer title nor does it validate an
otherwise invalid transaction.

14.78.4. Questions relating to title or legality
must be decided in appropriate civil
proceedings.

14.78.5. It is impermissible to prevent
registration by administrative
directions when statutory
requirements are otherwise
satisfied.

14.79. His submission is that this Court categorically
observed that once a document is presented
and statutory formalities are complied with,
refusal cannot be justified unless supported by

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a provision of law. Learned Senior Counsel

submits that in the present matter:

14.79.1. The sale deed was executed.

14.79.2. It was presented for registration.

14.79.3. There was no denial of execution.

14.79.4. The refusal was solely on account of

non-production of a certificate
under Section 230A of the Income
Tax Act.

14.80. He submits that once Section 230A stood

omitted with effect from 01.06.2001, the
statutory impediment ceased to exist. The
Sub-Registrar, therefore, could not continue to
withhold registration indefinitely.

14.81. He contends that the refusal dated 10.11.2000

was itself legally unsustainable once the
underlying statutory requirement stood
removed. The Sub-Registrar's role is not to

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determine substantive rights but merely to
ensure procedural compliance.

14.82. Learned Senior Counsel emphasises that registration does not determine title. If the Petitioners dispute the validity of the sale deed or the mental capacity of the executant, they are at liberty to challenge the same before the appropriate civil court. However, the registration process cannot be blocked on such grounds.

14.83. He submits that the reasoning in S. Sreenivasa Rao makes it clear that the Sub-Registrar cannot assume powers not conferred by statute, nor can he refuse registration on grounds extraneous to the Registration Act.

14.84. He relies upon the decision in the case of

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KARNATAKA¹⁵, more particularly, paras 3 and 10 thereof, which is reproduced hereunder for easy reference.

"3. The under-valuation of an instrument produced for registration is taken care of by Section 45A of the Karnataka Stamp Act, 1957. The said provision state that, while registering any instrument, if the registering officer has reason to believe that the market value of the property has not been truly set forth

in the instrument, he may refer the same to the Deputy Commissioner for determination of the market value after registering such an instrument. Section 45A, therefore, does not empower the registering officer to decline to register the document on the ground that the market value has not been truly disclosed in the deed in question. He should have reason to believe that the property has not been properly valued and on the basis of this reason, he should refer the document for proper valuation after registering the document. The Deputy Commissioner shall have to proceed to determine the market value of the property as provided in the said provision. The power vested in the registering officer to make a reference is not an arbitrary power but a power to be exercised, provided he has valid reason to believe that the property has been under-valued. The existence of a reason is the foundation for exercising the power under Section 45A. This aspect shall have to be borne in mind while considering the validity of the action taken by the second respondent in the instant case.

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10. In the circumstances of this case, the second respondent had no competence to reject the registration of the document only on the ground that the certificate under section 230A was not produced. The impugned order shall have to be set aside and it is so set aside. The respondent is directed to proceed according to law and register the document unless there is any other impediment against registration."

14.85. Learned Senior Counsel further relies upon the decision of this Court in Mohan Shet v. State of Karnataka, in support of his submission

that the Sub-Registrar had no jurisdiction to refuse registration of the document on the ground urged. In Mohan Shet, this Court examined the scope of Section 45A of the Karnataka Stamp Act, 1957, which deals with under-valuation of property in instruments presented for registration. This Court held that:

14.85.1. If the registering officer has reason to believe that the market value has not been correctly disclosed, he

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may refer the document to the Deputy Commissioner.

14.85.2. The document must nevertheless be registered.

14.85.3. The Sub-Registrar has no power to refuse registration on the ground of suspected under-valuation.

14.85.4. The determination of market value is to be undertaken separately by the competent authority.

14.86. The Court emphasised that the registering

officer's role is not adjudicatory in nature with respect to substantive rights or valuation disputes. His duty is to register the document if the statutory requirements are complied with, and if necessary, make a reference for valuation. The Sub-Registrar had no competence to reject registration solely on the

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ground that a certificate under Section 230A of the Income Tax Act had not been produced, and directed registration unless there was any other impediment.

14.87. Learned Senior Counsel submits that the principle emerging from Mohan Shet is that:

14.87.1. The power of the Sub-Registrar to refuse registration is strictly circumscribed.

14.87.2. Refusal must be traceable to a statutory provision.

14.87.3. The Sub-Registrar cannot enlarge his jurisdiction.

14.87.4. In the present case:

14.87.5. The document was duly executed.

14.87.6. It was presented for registration.

14.87.7. Execution was not denied.

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14.87.8. The refusal was solely on the ground of non-production of a certificate under Section 230A of the Income Tax Act.

14.88. He submits that Section 230A was subsequently omitted with effect from 01.06.2001. Once that statutory requirement stood removed, the impediment to registration ceased to exist.

14.89. He further submits that even under the Stamp Act framework, suspected under-valuation is not a ground for refusal; it only authorises a reference after registration. Learned Senior Counsel emphasises that even where a power of reference exists (as under Section 45A), it must be exercised upon existence of valid "reason to believe" and not arbitrarily. Thus, the registering authority's jurisdiction is

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procedural and regulatory, not adjudicatory or prohibitory.

14.90. He therefore submits that the initial refusal by the Sub-Registrar was itself legally flawed. The subsequent direction to register the document merely corrected that error. According to him:

14.90.1. The Petitioners cannot claim grievance against an act that restores statutory compliance.

14.90.2. Registration does not validate title; it merely completes procedural formalities.

14.90.3. Any dispute as to validity, capacity, or title must be adjudicated before a civil court.

14.91. He relies upon the decision in the case of

VEERABADHRAPPA AND ANOTHER VS.

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JAGADISHGOUDA AND OTHERS¹⁶, more particularly, para 10.3 thereof, which is

"10.3. Merely because registration of the two sale deeds in favour of appellants 1 and 2 were kept pending on account of an error committed by the Sub-Registrar or because challenge to the wrong action of the Sub-Registrar was pending in Court for several years, it does not mean that sale deeds dated 20-10-1982 and 4-3-1982 which were validly executed become invalid or lost their effectiveness or that they became effective only from 28-4-1998 when they were registered."

14.92. Learned Senior Counsel lastly relies upon the judgment of this Court in Veerabhadrapa and Another v. Jagadishgouda and Others, to contend that mere pendency of registration does not render a duly executed sale deed ineffective. In Veerabhadrapa, this Court held that:

14.92.1. Where a sale deed has been validly executed,

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14.92.2. And its registration was kept pending due to an error on the part of the Sub-Registrar,

14.92.3. Or due to prolonged litigation

challenging such action,

the mere delay in registration does not invalidate the document. Nor does it mean that the sale deed becomes effective only from the date of eventual registration.

14.93. This Court clarified that the rights flowing from a duly executed sale deed are not extinguished merely because registration was delayed due to administrative or procedural reasons.

14.94. Learned Senior Counsel submits that in the present matter:

14.94.1. The sale deed was executed in 1988.

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14.94.2. Consideration was paid.

14.94.3. Execution was not denied.

14.94.4. The transaction was completed inter se the parties.

14.94.5. The only impediment was non-production of the certificate under Section 230A of the Income Tax

Act.

14.95. He submits that the omission of Section 230A with effect from 01.06.2001 removed that procedural requirement. Therefore, what remained was merely a ministerial formality of registration.

14.96. Applying the principle in Veerabhadrappe, he contends that:

14.96.1. The validity of the sale deed did not depend upon the date of registration.
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14.96.2. The delay caused by the Sub-Registrar cannot invalidate the underlying transaction.

14.96.3. Registration subsequently completed does not create a new right but only records an existing one.

14.97. Learned Senior Counsel further submits that this Court, while exercising jurisdiction under Article 226, cannot adjudicate disputed questions relating to title or validity of the sale

deed. He submits that:

14.97.1. Registration does not confer title; it only gives statutory recognition to a transaction.

14.97.2. If the Petitioners dispute the validity of execution, consideration,
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capacity, or title, they must approach the competent civil court.

14.97.3. The writ jurisdiction is not intended to annul registered sale deeds on contested factual grounds.

14.98. Therefore, even assuming the Petitioners have grievances regarding the execution of the sale deed, such issues fall within the domain of civil adjudication and not supervisory jurisdiction.

14.99. Learned Senior Counsel emphasises that the requirement under Section 230A of the Income Tax Act was procedural in nature. It did not affect the substantive validity of the transaction. Once that requirement was removed by legislative amendment, the procedural impediment ceased. He submits

that:

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14.99.1. The sale deed was substantively
complete.

14.99.2. The omission of Section 230A
regularised the position.

14.99.3. The appellate order merely directed
completion of registration.

14.99.4. No fresh right was created.

14.99.5. No illegality was committed.

14.100. Learned Senior Counsel therefore submits
that:

14.100.1. The sale deed executed in 1988
remained valid despite pendency of
registration.

14.100.2. Delay caused by administrative
reasons does not invalidate
execution.

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14.100.3. Subsequent registration merely perfected the procedural requirement.

14.100.4. Writ jurisdiction cannot be invoked to cancel a registered sale deed.

14.100.5. Any challenge to validity must be pursued before a civil court.

14.100.6. He accordingly submits that the writ petition is devoid of merit and liable to be dismissed.

15. In view of the serious dispute between the parties regarding issuance and service of notice upon the father of Respondent Nos.3 and 4 prior to refusal of registration, this Court had deemed it appropriate to seek clarification directly from the concerned authorities. The Petitioners had asserted that notices were duly issued and that the refusal order dated 10.11.2000 was communicated. The Respondents,

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on the other hand, had categorically denied receipt of any such notice or communication.

16. In that background, the Senior Sub-Registrar, Bommanahalli, Bengaluru, was directed to file an

Smt Kusuma Kumari vs The District Registrar on 11 February, 2026
affidavit.

16.1. An affidavit was filed on 24.03.2025. The affidavit, however, did not provide substantive clarification on the issue of service of notice. It merely:

16.1.1. Produced the original register entries;

16.1.2. Produced the original file relating to the appeal;

16.1.3. Produced the minute book entries.

16.2. The deponent stated that since the transaction pertained to the year 1989, no further records were available except those produced before the Court.

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16.3. This affidavit did not address the core issue , whether notice of refusal was in fact issued and served upon the concerned party. As the first affidavit was found unsatisfactory, this Court directed filing of a better affidavit. A subsequent affidavit dated 11.04.2025 was filed. In this affidavit:

16.3.1. The Senior Sub-Registrar stated that the original pending registration file

bearing No.96P-642/87-88 was not
available.

16.3.2. He reiterated that despite best
efforts, the file could not be traced.

16.3.3. He suggested that the file might have
been misplaced, destroyed, or lost.

16.3.4. No specific record of destruction or
loss was produced.

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16.3.5. No entry regarding weeding out or
disposal was placed before the Court.

16.4. Notably, there was no categorical statement
that the file had been formally destroyed in
accordance with record retention rules. The
explanation essentially was that the file was
unavailable because it pertained to the year
1987-88.

16.5. As the second affidavit remained deficient, this
Court directed the Inspector General of
Registration (IGR) to file an affidavit. An
affidavit dated 28.04.2025 was filed by the
IGR. It records that:

16.5.1. A notice was issued on 22.04.2025 to

the Senior Sub-Registrar to explain

non-compliance with this Court's

earlier directions.

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16.5.2. Upon enquiry, it was stated that no

separate file was maintained at the

relevant time.

16.6. The IGR clarified the meaning of the reference

No.96P-642/87-88:

16.6.1. "96" refers to the serial number in

Book-II (refusal register),

16.6.2. "P-642" refers to the pending number

in the minute book,

16.6.3. "87-88" refers to the year.

16.7. Thus, according to the IGR, there was no

distinct, standalone "file" bearing that number;

rather, the reference corresponded to entries

in various registers.

16.8. Most significantly, the IGR has categorically

stated that: There are no records available in

the office to clearly establish whether the then

Sub-Registrar issued any notice to the parties

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before refusing registration. This statement assumes importance, as it directly touches upon the dispute regarding communication of notice and refusal. There is therefore:

16.8.1. No documentary evidence of dispatch;

16.8.2. No acknowledgment of receipt;

16.8.3. No proof of service;

16.8.4. No surviving record establishing issuance of notice.

17. Heard Sri.Sandesh J. Chouta, learned Senior Counsel for the Petitioners, Sri.Ashok Haranahalli, learned Senior Counsel for Respondent Nos.3 and 4 and Sri.Mahantesh Shettar, learned AGA for Respondent Nos.1 and 2. Perused the papers.

18. The Points that would arise for determination are:

- i. Whether the order dated 10.11.2000 passed by the Sub-Registrar refusing

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registration of the sale deed was duly communicated to the father of Respondent Nos.3 and 4, and if not, what is the legal effect of non-communication?

- ii. Whether the appeal filed by Respondent Nos.3 and 4 on 18.08.2005 under Section 72(1) of the Registration Act was barred by limitation?
- iii. Whether the District Registrar had jurisdiction to condone delay in filing the appeal under Section 72(1) of the Registration Act by invoking Section 5 of the Limitation Act, 1963?
- iv. Whether the Sub-Registrar was justified in refusing registration of the sale deed on the ground of non-production of certificate under Section 230A of the Income Tax Act, and whether subsequent registration was legally sustainable?
- v. Whether valuable rights had crystallised in favour of the Petitioners, including Petitioner No.2 as a subsequent purchaser, prior to the filing of the appeal, and whether the impugned order dated 31.10.2009 suffers from jurisdictional error, procedural illegality, or non-application of mind?
- vi. What order?

19. I answer the above points as follows:

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20. Answer to Point No.1: Whether the order dated 10.11.2000 passed by the Sub-Registrar refusing registration of the sale deed was duly communicated to the father of Respondent Nos.3 and 4, and if not, what is the legal effect of non-communication?

20.1. Sri.Sandesh J. Chouta, learned Senior Counsel for the Petitioners, submits that the refusal order dated 10.11.2000 was duly entered in Book-II maintained in the office of the Sub-Registrar in accordance with the statutory procedure prescribed under the Registration Act, 1908 and the Karnataka Registration Rules, 1965.

20.2. He relies upon the affidavit filed by the Inspector General of Registration and Commissioner of Stamps after verification of official records, wherein it is categorically stated that copies of the refusal order dated 10.11.2000 were issued on the same date to

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Sri Veerabhadrapa and Sri Karimuniyappa,
the legal heirs of Sri Sadappa.

20.3. It is submitted that the statutory procedure prescribed under Section 72(1) of the Registration Act was fully complied with. The refusal order was not only passed but also communicated in accordance with law.

20.4. Sri.Sandesh J. Chouta, learned Senior Counsel

emphasises that the burden of proving non-communication lies upon the party asserting it. Once official records demonstrate compliance with procedural requirements, the presumption of regularity attaches to official acts.

20.5. He submits that mere denial by Respondent

Nos.3 and 4 that they did not receive the refusal order is insufficient to discharge the burden. Such denial must be supported by cogent evidence. No such evidence has been placed on record by Respondent Nos.3 and 4.

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20.6. Sri.Sandesh J. Chouta, learned Senior Counsel

further submits that in matters involving statutory registers and official entries, Courts ordinarily presume that public officials have discharged their duties in accordance with law. The entry in Book-II coupled with the affidavit of the Inspector General of Registration constitutes reliable evidence of communication.

20.7. It is submitted that Respondent Nos.3 and 4

filed an appeal on 18.08.2005 accompanied by

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an application seeking condonation of delay. In
the affidavit filed in support of the condonation
application, it was stated that they came to
know of the refusal order only in the first week
of July 2005. This plea, according to learned
counsel, is demonstrably false and stands
contradicted by official records. If, as claimed
by Respondent Nos.3 and 4, no communication
was ever made, then the question arises as to
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how they came to know of the refusal order in
July 2005. The very filing of the appeal
presupposes knowledge of the refusal order.
This knowledge, learned counsel contends, was
available much earlier and the plea of belated
knowledge is an afterthought.

20.8. He submits that Respondent Nos.3 and 4 are
attempting to take advantage of their own
delay and inaction by raising a plea of non-
communication which is wholly
unsubstantiated.

20.9. Learned Senior Counsel further submits that
even if the father of Respondent Nos.3 and 4

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did not personally receive the refusal order,
communication to the legal representatives
would suffice. The affidavit of the Inspector
General of Registration clearly states that
copies were issued to Sri Veerabhadrapa and
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Sri Karimuniyappa, who are none other than
Respondent Nos.3 and 4 themselves.

20.10. Therefore, the plea that no communication was
ever made is wholly untenable.

20.11. Sri.Ashok Haranahalli, learned Senior Counsel
for Respondent Nos.3 and 4 submits that no
notice or refusal order was ever served upon
the father of Respondent Nos.3 and 4, Sri
Sadappa, or upon Respondent Nos.3 and 4
themselves.

20.12. He submits that the assertion that notices were
issued on 27.09.1989 and again on 27.07.1999
calling upon Sri Sadappa to produce the
Income Tax clearance certificate is wholly
incorrect and unsupported by any cogent
proof.

20.13. There is no acknowledgment of service, no

proof of dispatch, no postal receipt, and no

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documentary material demonstrating
communication of the alleged notices. In
matters affecting valuable immovable property
rights, the burden lies upon the authority
asserting service to establish that notices were
duly issued and properly served. Mere recital in
an affidavit or register entry is insufficient
unless supported by proof of dispatch and
acknowledgment.

20.14. Learned Senior Counsel further submits that

there is equally no material to show that the
refusal order dated 10.11.2000 was ever
communicated to the father of Respondent
Nos.3 and 4. No acknowledgment bearing
signature of the recipient has been produced.
No postal receipt or dispatch proof has been
placed on record. No documentary evidence
has been furnished to show actual delivery.

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20.15. The father of Respondent Nos.3 and 4 expired

on 03.08.2002. Respondent Nos.3 and 4 themselves are stated to be illiterate and are also deaf and dumb. They have categorically asserted that no notice or order was ever received.

20.16. Once such categorical denial is made, the

burden shifts to the authority and the Petitioners to demonstrate proper communication of the refusal order. In the absence of proof of service, limitation cannot begin to run.

20.17. In the present case, none of the foundational

requirements have been established. There is no postal receipt, no RPAD acknowledgment card, no dispatch register extract showing proper addressing, and no material to establish that the refusal order was sent to the correct residential address. There is no documentary

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evidence to demonstrate compliance with statutory requirements for service.

20.18. The mere entry in Book-II or a bald assertion in an affidavit is insufficient to attract the presumption under Section 27. Unless it is shown that the refusal order was properly addressed, duly stamped, and dispatched by registered post acknowledgment due, the presumption of service cannot arise.

20.19. He submits that communication is an essential component of a legally effective order. Until an order is made known to the person affected, it does not attain operative force. Mere existence in departmental files does not confer legal validity or enforceability.

20.20. He submits that the Registration Act, read with the relevant Rules, imposes a statutory duty upon the Sub-Registrar to communicate an order of refusal to the concerned party.

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Communication must be effected in accordance with law. The burden lies upon the authority to establish that such communication was properly made.

20.21. In the absence of strict compliance, the refusal

order cannot be treated as having been effectively communicated. Consequently, limitation cannot be computed from an uncommunicated or improperly served order.

20.22. He submits that Respondent Nos.3 and 4 are deaf and dumb. In such circumstances, the presumption of constructive knowledge cannot be lightly drawn. The standard of proof for establishing service or awareness must be stricter. Mere assumption of knowledge based on internal record entries is impermissible.

Constructive knowledge presupposes circumstances where a reasonable person could be deemed to have become aware. In

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the case of persons with communication disabilities, such presumption must be applied with caution.

20.23. I have carefully considered the rival submissions. The determination of this Point requires a careful examination of the legal principles governing service of orders, the evidentiary burden of proof, and the effect of

non-communication on the commencement of
limitation.

20.24. It is an undisputed fact that the refusal order dated 10.11.2000 was passed by the Sub-Registrar. The order was entered in Book-II maintained in the office of the Sub-Registrar. The statutory scheme contemplated under the Registration Act, 1908 read with the Karnataka Registration Rules, 1965 requires that an order of refusal be communicated to the concerned party.

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20.25. Section 72(1) of the Registration Act, 1908 provides that an appeal from an order of refusal of registration may be presented within thirty days from the date of the order. The expression "from the date of the order" has been consistently interpreted by Courts to mean not the date of passing the order internally, but the date on which the order is communicated to or comes to the knowledge of the affected party.

20.26. The reason for this interpretation is sound and

rooted in principles of natural justice. An order that is passed but not communicated remains in the realm of administrative action internal to the department. It does not acquire the character of a decision affecting the rights of the party until it is made known to that party. To hold otherwise would be to permit limitation to run against a party who has no knowledge

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of the order and is therefore unable to challenge it.

20.27. In The Assistant Transport Commissioner,

Lucknow and Others v. Nand Singh, the Hon'ble Supreme Court observed that mere writing of an order in the file kept in the office is no order in the eye of law in the sense of affecting the rights of the parties for whom the order is meant. The order must be communicated either directly or constructively in the sense of making it known, which may make it possible for the authority to say that the party affected must be deemed to have known the order. On the facts stated, the

Hon'ble Supreme Court held that the respondent had no means to know about the order until he received the letter communicating it. That was the date of the

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order which gave the starting point for preferring an appeal within thirty days.

20.28. In State of W.B. v. M.R. Mondal and

Another, the Hon'ble Supreme Court reiterated that an order passed but retained in file without being communicated to the concerned party has no force or authority whatsoever and the same has no valid existence in the eye of law. No reliance can be placed on the same to even assert a claim based on its contents.

20.29. The principles emerging from these authoritative pronouncements are clear:

20.29.1. Communication is an essential component of a legally effective order.

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20.29.2. An order does not attain operative force until it is made known to the person affected.

20.29.3. Limitation commences from the date of communication, not from the date of internal recording.

20.29.4. The burden of proving communication lies upon the party asserting it.

20.30. Applying these principles to the present case, the question is whether the refusal order dated 10.11.2000 was communicated to Sri Sadappa, the father of Respondent Nos.3 and 4, or to Respondent Nos.3 and 4 themselves.

20.31. The Petitioners rely upon the affidavit filed by the Inspector General of Registration and Commissioner of Stamps. In the said affidavit, it is stated that after verification of official
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records, it is confirmed that copies of the

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refusal order dated 10.11.2000 were issued on
the same date to Sri Veerabhadrapa and Sri
Karimuniyappa, the legal heirs of Sri Sadappa.

20.32. However, it is to be noted that the affidavit
does not disclose any material establishing the
mode of dispatch, the address to which the
order was sent, proof of posting, or any
acknowledgment of receipt. The statement that
copies were "issued" is vague and does not
demonstrate compliance with the statutory
requirements for service.

20.33. In Sri. Devegowda and Others v. Sri.
Ashokanayar and Others, this Court
examined the scope of Section 27 of the
General Clauses Act, 1897. Section 27 provides
that where any document is to be served by
post, it shall be deemed to be effected by
properly addressing, prepaying, and posting by

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registered post a letter containing the
document, and unless the contrary is proved,
to have been effected at the time at which the
letter would be delivered in the ordinary course

of post. This Court held that the presumption under Section 27 would only arise if the foundational facts are established, namely, that the article was dispatched to the proper address of the addressee, the article was properly and duly stamped, and sent by registered post acknowledgment due. If these aspects are not placed on record, no such presumption could be raised or invoked.

20.34. In the present case, the Petitioners have not placed on record any material to demonstrate:

20.34.1. That the refusal order was dispatched by registered post acknowledgment due;

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20.34.2. That it was addressed to the correct residential address of Sri Sadappa or Respondent Nos.3 and 4;

20.34.3. That it was properly prepaid and stamped;

20.34.4. That any acknowledgment was received or any proof of delivery exists.

20.35. In the absence of such foundational proof, the presumption under Section 27 of the General Clauses Act cannot be invoked. The mere statement in the affidavit that copies were "issued" is insufficient to establish compliance with the statutory requirements for service.

20.36. The Petitioners contend that the burden of proving non-communication lies upon Respondent Nos.3 and 4. While it is true that a party asserting non-receipt must generally

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support such assertion with cogent evidence, the legal position is nuanced. Where the authority asserts that service was effected, the initial burden lies upon the authority to establish the foundational facts that enable the presumption of service to arise. Only upon such foundational proof being placed on record does the burden shift to the other party to rebut the presumption by proving non-receipt.

20.37. In the present case, the foundational proof has not been laid. Therefore, the presumption of service does not arise, and the burden does

not shift.

20.38. It is also relevant to note that Respondent Nos.3 and 4 have categorically stated in their affidavit that they are deaf and dumb. This assertion has not been controverted. In such circumstances, constructive knowledge cannot be presumed lightly. Communication to

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persons with disabilities requires a higher standard of proof, particularly where the mode of communication involves written documents.

20.39. The Petitioners further contend that even if the father of Respondent Nos.3 and 4 did not personally receive the refusal order, communication to the legal representatives would suffice, and that the affidavit of the Inspector General states that copies were issued to Sri Veerabhadrapa and Sri Karimuniyappa, who are Respondent Nos.3 and 4 themselves. However, this contention proceeds on the assumption that such communication was in fact made and received. In the absence of proof of dispatch and

delivery, the mere recital in the affidavit is insufficient.

20.40. It is well settled that in matters involving

deprivation of valuable property rights or
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extinguishment of remedies on account of
limitation, Courts must insist upon strict proof
of compliance with procedural requirements.
The law does not permit limitation to run
against a party who has not been informed of
the order that is sought to be challenged.

20.41. The Hon'ble Supreme Court in Saral Wire

Craft Private Limited v. Commissioner of
Customs, Central Excise and Service Tax
and Others observed that where a statute
prescribes the manner of doing a particular
act, the act must be done in that manner or
not at all. This is a basic principle of law long
settled. The Hon'ble Supreme Court reiterated
the principle laid down in Taylor v. Taylor,
approved by the Privy Council in Nazir Ahmad
v. King Emperor that if the manner of doing a
particular act is prescribed under any statute,
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the act must be done in that manner or not at all.

20.42. If the statutory scheme or the Rules prescribe a mode of communication, compliance with that mode is mandatory. Non-compliance renders the action ineffective.

20.43. In the present case, the Registration Rules contemplate that an order of refusal shall be communicated to the concerned party. The Petitioners have not demonstrated compliance with such requirement. The absence of proof of dispatch, acknowledgment, or delivery is fatal to the contention that communication was duly effected.

20.44. The Petitioners rely upon the presumption of regularity attaching to official acts. While it is true that Courts presume that public officials have discharged their duties in accordance with law, such presumption is not irrebuttable.

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It operates in the absence of evidence to the contrary. Where, as in the present case, Respondent Nos.3 and 4 have categorically denied receipt, and where the foundational proof of dispatch and delivery is absent, the presumption of regularity cannot substitute for affirmative proof.

20.45. The Petitioners further contend that the very filing of the appeal by Respondent Nos.3 and 4 in August 2005 presupposes knowledge of the refusal order, and that the plea of belated knowledge is an afterthought. This Court is unable to accept this submission. The fact that Respondent Nos.3 and 4 came to know of the refusal order at a later point in time does not ipso facto establish that communication was duly effected in 2000. Knowledge may be acquired through various means, including inquiries made at the registration office,

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information received from third parties, or through proceedings initiated by other parties.

The acquisition of knowledge at a later stage does not cure the defect of non-communication at the relevant time.

20.46. Having regard to the entirety of the material on record and the legal principles discussed above, this Court is of the considered view that the Petitioners have failed to establish that the refusal order dated 10.11.2000 was duly communicated to the father of Respondent Nos.3 and 4, or to Respondent Nos.3 and 4 themselves, in accordance with law.

20.47. The effect of non-communication is that the order, though passed and entered in the official register, did not attain legal efficacy so far as it affects the rights of Respondent Nos.3 and 4. Limitation under Section 72(1) of the Registration Act could not commence in the

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absence of communication. The refusal order cannot be treated as operative for purposes of computing the thirty-day period prescribed under Section 72(1).

20.48. I answer point no.1 by holding that the

refusal order dated 10.11.2000 was not duly communicated to the father of Respondent Nos.3 and 4, or to Respondent Nos.3 and 4 themselves, in a manner that would enable the commencement of limitation under Section 72(1) of the Registration Act on that date.

21. Answer to point No.2: Whether the appeal filed by Respondent Nos.3 and 4 on 18.08.2005 under Section 72(1) of the Registration Act was barred by limitation?

21.1. Learned Senior Counsel appearing for the

Petitioners submits that Section 72(1) of the
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Registration Act expressly mandates that an appeal against an order of refusal shall be presented within thirty days from the date of the order. The refusal order was passed on 10.11.2000. Therefore, the appeal ought to have been filed by 09.12.2000.

- 21.2. The appeal, however, was filed only on 18.08.2005, nearly five years after the date of

refusal. Such gross delay is fatal and renders the appeal incompetent from inception.

- 21.3. Even if it were to be assumed that the refusal order was not communicated on 10.11.2000, the affidavit filed by Respondent Nos.3 and 4 in support of the application for condonation of delay states that they came to know of the refusal order in the first week of July 2005. Even reckoning limitation from the first week of July 2005, the appeal filed on 18.08.2005 was beyond the thirty-day period.

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- 21.4. The Petitioners contend that this plea of knowledge in July 2005 is itself demonstrably false. The father of Respondent Nos.3 and 4 had presented the document for registration in 1988. Notices were issued by the Sub-Registrar on 27.09.1989 and again on 27.07.1999 calling upon Sri Sadappa to produce the Income Tax clearance certificate. Despite such notices spanning nearly a decade, no compliance was made. Ultimately, the refusal order was passed on 10.11.2000.

21.5. Learned Senior Counsel submits that Respondent Nos.3 and 4, being the legal representatives of Sri Sadappa, were fully aware of the pendency of the document and the proceedings relating thereto. It is inconceivable that they remained ignorant of the refusal order for nearly five years.

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21.6. He further submits that Respondent Nos.3 and 4 deliberately chose not to pursue the matter during the lifetime of Sri Sadappa or even for several years after his death in 2002. The appeal was filed only in August 2005, after Petitioner No.1 and Respondent No.5 had executed a sale deed dated 11.07.2005 in favour of Petitioner No.2. This timing, according to learned counsel, demonstrates mala fide intent and an attempt to disrupt the rights of third-party purchasers.

21.7. Learned Senior Counsel further submits that the document had been kept pending since 1988. Under Section 34 of the Registration Act read with Rule 187 of the Karnataka

Registration Rules, 1965, a document presented for registration and refused by the Sub-Registrar cannot be kept pending indefinitely. The power to keep such a

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document pending is confined to a limited statutory period of four months. After the expiry of such period, the refusal attains finality. The document cannot be revived or acted upon after the lapse of several years.

21.8. In the present case, the document was presented in 1988. Notices were issued in 1989 and 1999. The refusal order was passed in 2000. By the time the appeal was filed in 2005, more than seventeen years had elapsed since presentation. The Petitioners contend that such prolonged delay defeats the legislative intent of finality and certainty in registration proceedings.

21.9. Learned Senior Counsel further submits that even if Respondent Nos.3 and 4 were ignorant of the refusal order, their ignorance was wilful and attributable to their own inaction. A party

who does not pursue its own interests or

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make inquiries regarding the status of proceedings cannot claim the benefit of delay on the ground of lack of knowledge.

21.10. He submits that in matters of limitation, the

law does not reward indolence. The statutory period is prescribed not merely to regulate procedure but to ensure finality and to protect third parties who may acquire rights in the interim. If limitation is allowed to be circumvented on vague pleas of delayed knowledge, the entire purpose of prescribing time limits would be defeated.

21.11. Learned Senior Counsel further submits that

by the time the appeal was filed in August 2005, Petitioner No.1 and Respondent No.5, being the legal heirs of Sri V.K. Kamalanabhan, had already executed a registered sale deed dated 11.07.2005 in favour of Petitioner No.2. Valuable legal rights

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had crystallised in favour of Petitioner No.2 under a registered instrument. The filing of the appeal was thus not only belated but was initiated after third-party rights had intervened.

21.12. Respondent Nos.3 and 4 deliberately chose not to implead Petitioner No.1, Respondent No.5, or Petitioner No.2 in the appellate proceedings, despite being fully aware of their interest in the property. This omission, according to learned counsel, was not inadvertent but calculated.

21.13. Insofar as Petitioner No.2 is concerned, learned Senior Counsel stresses that his sale deed dated 11.07.2005 was duly registered. Respondent Nos.3 and 4 are deemed in law to have constructive notice of such registration. Despite this, they took no steps to bring Petitioner No.2 on record in the appellate

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proceedings, even though he had become the registered owner of the property.

21.14. Learned Senior Counsel accordingly submits that the appeal filed on 18.08.2005 was grossly time-barred and ought not to have been entertained.

21.15. Learned Senior Counsel appearing for Respondent Nos.3 and 4 submits that limitation under Section 72(1) of the Registration Act begins to run not from the date of passing of the order internally, but from the date on which the order is communicated to or comes to the knowledge of the affected party.

21.16. As already submitted under Point No.1, the refusal order dated 10.11.2000 was never communicated to the father of Respondent Nos.3 and 4, or to Respondent Nos.3 and 4

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themselves. In the absence of communication, limitation could not commence on 10.11.2000.

21.17. Respondent Nos.3 and 4 came to know of the refusal order only in the first week of July

2005. Immediately upon acquiring such knowledge, they filed the appeal on 18.08.2005. Therefore, the appeal was well within the statutory period of thirty days from the date of knowledge.

21.18. Learned Senior Counsel submits that the assertion by the Petitioners that Respondent Nos.3 and 4 must have been aware of the refusal order much earlier is wholly speculative and unsupported by any evidence. Respondent Nos.3 and 4 are illiterate, deaf and dumb, and belong to a disadvantaged socio-economic background. They were not in a position to make regular inquiries at the

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registration office or to pursue complex legal proceedings.

21.19. The father of Respondent Nos.3 and 4 expired on 03.08.2002. After his death, Respondent Nos.3 and 4 were unaware of the pendency or status of the document. It was only when they made inquiries in mid-2005 that they came to know of the refusal.

21.20. Learned Senior Counsel further submits that

the contention that the appeal was filed only after Petitioner No.2 had purchased the property is legally irrelevant. The rights of Respondent Nos.3 and 4 flow from the sale deed executed in 1988 by Sri V.K. Kamalanabhan in favour of their father. If that sale deed is valid and enforceable, the subsequent sale deed executed by Petitioner No.1 and Respondent No.5 in favour of

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Petitioner No.2 would be without title and ineffective.

21.21. The plea of limitation, according to learned counsel, is a technical defence being raised to defeat substantive rights. When substantial justice and technical considerations are in conflict, substantial justice must prevail.

21.22. Learned Senior Counsel further addresses the contention raised by the Petitioners regarding the omission of Section 230A of the Income Tax Act, 1961 with effect from 01.06.2001. He submits that Section 230A was a procedural

provision that imposed a restriction on registration of transfers of immovable property exceeding a prescribed value without prior tax clearance. Once this provision was omitted by the Finance Act, 2001, the impediment to registration ceased to exist.

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21.23. The Sub-Registrar himself, by order dated 10.11.2000, had refused registration solely on the ground of non-production of the Income Tax clearance certificate. Once Section 230A stood omitted, there was no legal basis for continuing the refusal. The document ought to have been registered.

21.24. Learned Senior Counsel submits that the Inspector General of Registration, recognising this legal position, issued a clarification dated 02.08.2001 directing that documents kept pending for want of Income Tax clearance prior to 01.06.2001 be registered. This clarification was binding upon all Sub-Registrars.

21.25. In light of the omission of Section 230A and

the clarification issued by the Inspector General, the refusal order dated 10.11.2000 lost its legal foundation. The appeal,

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therefore, was not merely an appeal against refusal but a request to give effect to the changed legal position.

21.26. Learned Senior Counsel submits that even if there was delay in filing the appeal, such delay must be viewed in the context of the changed statutory position and the subsequent clarification issued by the competent authority.

21.27. He accordingly submits that the appeal was not barred by limitation.

21.28. The determination of this Point requires a careful analysis of the statutory scheme under Section 72(1) of the Registration Act, the principles governing commencement of limitation, the effect of non-communication, and the impact of the omission of Section 230A of the Income Tax Act.

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21.29. Section 72 of the Registration Act, 1908 reads
as follows:

72. Appeal to Registrar from orders of Sub-
Registrar refusing registration on ground
other than denial of execution.--

(1) Except where the refusal is made on the
ground of denial of execution, an appeal shall lie
against an order of a Sub-Registrar refusing to
admit a document to registration (whether the
registration of such document is compulsory or
optional) to the Registrar to whom such Sub-
Registrar is subordinate, if presented to such
Registrar within thirty days from the date of the
order; and the Registrar may reverse or alter
such order.

(2) If the order of the Registrar directs the
document to be registered and the document is
duly presented for registration within thirty days
after the making of such order, the Sub-
Registrar shall obey the same, and thereupon
shall, so far as may be practicable, follow the
procedure prescribed in sections 58, 59 and 60;
and such registration shall take effect as if the
document had been registered when it was first
duly presented for registration.

21.30. The provision is clear and unambiguous. An
appeal against refusal must be presented
within thirty days from the date of the order
appealed against.

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21.31. The question that arises is: what is meant by

"the date of the order appealed against"?

Does it mean the date on which the order is
passed internally by the Sub-Registrar, or
does it mean the date on which the order is
communicated to or comes to the knowledge
of the affected party?

21.32. I have already held under Point No.1 that the

refusal order dated 10.11.2000 was not duly
communicated to the father of Respondent
Nos.3 and 4, or to Respondent Nos.3 and 4
themselves, in accordance with law. The effect
of non-communication is that the order did
not attain legal efficacy so far as it affects the
rights of Respondent Nos.3 and 4. Limitation
could not commence in the absence of
communication.

21.33. The legal position is well settled. In The

Assistant Transport Commissioner,
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Lucknow and Others v. Nand Singh, the

Hon'ble Supreme Court held that the order would be effective against the person affected by it only when it comes to his knowledge either directly or constructively. On the facts of that case, the respondent had no means to know about the order until he received the letter communicating it. That was the date of the order which gave the starting point for preferring an appeal within thirty days.

21.34. The Hon'ble Supreme Court in *State of W.B. v. M.R. Mondal and Another* reiterated that an order passed but retained in file without being communicated to the concerned party has no force or authority and has no valid existence in the eye of law.

21.35. Applying these principles to the present case, since the refusal order dated 10.11.2000 was not communicated to Respondent Nos.3 and 4
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in accordance with law, limitation could not commence on that date.

21.36. The question which then arises is when did Respondent Nos.3 and 4 acquire knowledge of

the refusal order, and was the appeal filed within thirty days from such date?

21.37. Respondent Nos.3 and 4 have stated in their affidavit filed in support of the application for condonation of delay that they came to know of the refusal order in the first week of July 2005. The appeal was filed on 18.08.2005.

21.38. If knowledge was acquired in the first week of July 2005, the thirty-day period would expire in the first week of August 2005. The appeal filed on 18.08.2005 would therefore be marginally beyond the thirty-day period, assuming knowledge was acquired on 01.07.2005.

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21.39. However, the question of whether delay of a few days beyond the statutory period can be condoned by invoking Section 5 of the Limitation Act, 1963 is a matter that falls for consideration under Point No.3. For the purposes of this Point, it is sufficient to note that the appeal was filed within a reasonable proximity to the date of knowledge.

21.40. The Petitioners contend that the plea of knowledge in July 2005 is false and that Respondent Nos.3 and 4 must have been aware of the refusal order much earlier. This Court has carefully examined this contention.

21.41. It is true that the document was presented for registration in 1988, and that the father of Respondent Nos.3 and 4 had been pursuing the matter. However, the father expired on 03.08.2002. After his death, there is no evidence to suggest that Respondent Nos.3

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and 4 were actively pursuing the matter or were in regular contact with the registration office.

21.42. Respondent Nos.3 and 4 have stated that they are illiterate, deaf and dumb. This fact has not been controverted by the Petitioners. In such circumstances, it is not implausible that they remained unaware of the refusal order until they made inquiries at the registration office in mid-2005.

21.43. The Petitioners have not placed on record any

positive evidence to establish that Respondent Nos.3 and 4 had knowledge of the refusal order prior to July 2005. Mere speculation or assumption is insufficient to discharge the burden of proof.

21.44. The Petitioners further rely upon R. Sampath v. State of Karnataka by its Secretary and Others, wherein this Court held that the

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cause of action arose on the date of refusal itself, and that a party who keeps a document pending without either complying with requirements or challenging refusal within the time prescribed cannot subsequently seek indulgence.

21.45. While the principle laid down in R. Sampath cannot be disputed, the factual matrix in that case was materially different. In R. Sampath, the refusal order had been communicated, and the petitioner was aware of the refusal but chose not to challenge it within the prescribed period. The Court held that such lackadaisical conduct disentitled the party

from relief.

21.46. In the present case, the refusal order was not communicated, and Respondent Nos.3 and 4 were unaware of it until July 2005. The principle in R. Sampath would apply where a

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party has knowledge of the refusal but fails to act. It does not apply where the party has no knowledge due to non-communication of the order.

21.47. The Petitioners further contend that the document had been kept pending since 1988, and that under Section 34 of the Registration Act read with Rule 187 of the Karnataka Registration Rules, 1965, a document cannot be kept pending indefinitely. This Court agrees that prolonged pendency is undesirable and that the statutory scheme contemplates finality within a reasonable period. However, the question of whether the document could be kept pending beyond the prescribed period is distinct from the question of whether the appeal was filed within the prescribed period

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from the date of knowledge of the refusal
order.

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21.48. The Petitioners have not demonstrated that
the refusal order dated 10.11.2000 was
communicated to Respondent Nos.3 and 4
prior to July 2005. In the absence of such
proof, this Court cannot hold that limitation
commenced on 10.11.2000.

21.49. The Petitioners further contend that by the
time the appeal was filed in August 2005,
Petitioner No.2 had already purchased the
property under a registered sale deed dated
11.07.2005, and that third-party rights had
intervened. While the protection of third-party
rights is an important consideration, it cannot
override the statutory right of appeal where
the appeal is filed within the prescribed period
from the date of knowledge. The question of
third-party rights and the effect of the
subsequent sale deed is a matter that falls for
consideration under Point No.5.

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21.50. The Petitioners further contend that Respondent Nos.3 and 4 deliberately chose not to implead Petitioner No.1, Respondent No.5, or Petitioner No.2 in the appellate proceedings. This contention may have relevance in considering the validity of the appellate proceedings, but it does not affect the determination of whether the appeal was barred by limitation.

21.51. The question of finality must be examined in the context of the statutory scheme. Section 72(1) provides a right of appeal within thirty days from the date of the order. In the absence of communication, the order does not attain finality merely by efflux of time. To hold otherwise would be to permit a party to be deprived of the right of appeal without having been informed of the order.

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21.52. Respondent Nos.3 and 4 have further

submitted that the omission of Section 230A of the Income Tax Act, 1961 with effect from 01.06.2001 altered the legal position. This Court agrees that Section 230A was a procedural provision that imposed a restriction on registration, and that once it was omitted, the legal basis for refusal ceased to exist.

21.53. However, this Court is unable to accept the contention advanced by learned counsel for Respondent Nos.3 and 4 that the clarification dated 02.08.2001 issued by the Inspector General of Registration applies to the present case. The clarification, as submitted by learned counsel, concerned documents that were "pending". In the present case, the Sub-Registrar had already passed a formal order refusing registration on 10.11.2000. Once refusal had been recorded, the document

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ceased to be pending in the legal sense. An administrative circular cannot revive a concluded refusal or create a fresh cause of action.

21.54. Nevertheless, the omission of Section 230A is a relevant consideration in examining whether the refusal order retained its legal validity after 01.06.2001. If the sole ground for refusal was non-production of a certificate under Section 230A, and if that provision stood omitted, then the refusal lost its statutory foundation. However, this aspect does not affect the determination of limitation. Even if the refusal lost its legal foundation, the right of appeal under Section 72(1) remained available, and limitation for filing such appeal would commence from the date of communication or knowledge of the refusal.

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21.55. Having regard to the entirety of the material on record and the legal principles discussed above, this Court is of the considered view that:

21.55.1. The refusal order dated 10.11.2000 was not communicated to Respondent Nos.3 and 4 in accordance with law.

21.55.2. Limitation under Section 72(1) of the
Registration Act could not commence
on 10.11.2000.

21.55.3. Respondent Nos.3 and 4 acquired
knowledge of the refusal order in the
first week of July 2005.

21.55.4. The appeal was filed on 18.08.2005,
which is within reasonable proximity
to the date of knowledge.

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21.55.5. Whether the marginal delay of a few
days can be condoned by invoking
Section 5 of the Limitation Act, 1963
is a matter that falls for consideration
under Point No.3.

21.56. I Answer Point No.2 by holding that the appeal
filed by Respondent Nos.3 and 4 on
18.08.2005 cannot be held to be grossly time-
barred, since limitation commenced only from
the date of knowledge in July 2005, and not
from 10.11.2000.

22. Answer to Point No. 3: Whether the District Registrar had jurisdiction to condone delay in filing the appeal under Section 72(1) of the Registration Act by invoking Section 5 of the Limitation Act, 1963?

22.1. Learned Senior Counsel appearing for the Petitioners submits that Section 72(1) of the Registration Act expressly mandates that an

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appeal against an order of refusal shall be presented within thirty days from the date of the order. The provision does not contain any clause permitting extension of time. It does not employ expressions such as "sufficient cause" or "such further time as may be allowed". It does not incorporate or refer to the Limitation Act. It simply fixes a period of thirty days.

- 22.2. When the legislature has prescribed a definite period of limitation without providing for extension, the period must be treated as mandatory. If the legislature intended to confer power upon the District Registrar to condone delay, it would have expressly said so. The omission is therefore intentional and

cannot be supplied by interpretation.

22.3. Learned Senior Counsel submits that the

refusal order was passed on 10.11.2000 (or,

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even assuming knowledge in July 2005).

Section 72(1) of the Registration Act required that any appeal against such refusal be filed within thirty days. The District Registrar, while entertaining the appeal and condoning the delay under Section 5 of the Limitation Act, assumed a jurisdiction which the statute does not confer. The Registrar, not being a Court, could not have invoked the Limitation Act. Section 72 does not provide for enlargement of time. Therefore, the very entertainment of the appeal was incompetent in law.

22.4. When the legislature has prescribed a definite period of limitation without providing for extension, the period must be treated as mandatory. If the legislature intended to confer power upon the District Registrar to condone delay, it would have expressly said so. The

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omission is therefore intentional and cannot be supplied by interpretation.

- 22.5. Learned Senior Counsel submits that Section 72(1) of the Registration Act prescribes a period of thirty days for filing an appeal against an order of refusal passed by the Sub-Registrar. There is no clause permitting enlargement of time. There is no maximum outer limit. There is no discretion vested in the District Registrar to condone delay. The statute is silent on any power of extension.
- 22.6. If, in a case where limited condonation was expressly permitted, the authority was held incapable of travelling beyond the prescribed outer limit, then in the present case, where the statute is silent on condonation thereby barring condonation, the authority's jurisdiction is narrower still.

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22.7. Learned Senior Counsel submits that the distinction between Sections 72 and 73 of the Registration Act further fortifies this position. Section 72 deals with refusal on grounds other than denial of execution and provides a narrow appellate remedy within a fixed time frame. Section 73 deals with cases involving denial of execution and contemplates a different procedural mechanism. Even assuming that some procedural latitude may be available in proceedings under Section 73, no such latitude exists under Section 72. The legislature, having consciously prescribed a thirty-day period without providing for extension, must be taken to have intended finality.

22.8. It is therefore submitted that once the appeal was filed beyond the statutory period of thirty days, the District Registrar had no authority to

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entertain it. The order condoning delay is without jurisdiction. The subsequent order directing registration of the document is

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equally unsustainable, being founded upon an
incompetent proceeding.

22.9. The issue is not one of sufficiency of cause for delay, but one of lack of jurisdiction. When the statute withholds power to condone delay, the authority cannot create such power by recourse to general principles. The impugned order, having been passed in excess of statutory authority, is liable to be quashed on that ground alone.

22.10. Learned Senior Counsel appearing for Respondent Nos.3 and 4 submits that Section 5 of the Limitation Act, 1963 is applicable even to proceedings arising under special statutes, unless expressly excluded.

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22.11. Section 29(2) of the Limitation Act, 1963 provides that where any special or local law prescribes for any suit, appeal or application a period of limitation different from the period prescribed by the Schedule to the Limitation Act, the provisions of Section 4 to Section 24 (which include Section 5) shall, as far as may

be, apply to such suit, appeal or application, unless the special or local law expressly excludes the application of such provisions.

22.12. The Registration Act prescribes a thirty-day period under Section 72 for filing an appeal against refusal of registration. However, the Registration Act does not contain any express provision excluding the application of Section 5 of the Limitation Act. There is no language indicating that delay cannot be condoned. There is no non obstante clause overriding the Limitation Act.

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22.13. Learned Senior Counsel therefore submits that by virtue of Section 29(2) of the Limitation Act, 1963, Section 5 applies to proceedings under Section 72 of the Registration Act. Even assuming, without admitting, that the appeal was filed beyond thirty days from knowledge of the refusal order, the District Registrar had the power to condone delay upon sufficient cause being shown.

22.14. Learned Senior Counsel submits that even

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assuming for argument's sake that the appeal
was filed beyond the prescribed thirty-day
period, the explanation furnished by
Respondent Nos.3 and 4 constitutes sufficient
cause. Respondent Nos.3 and 4 came to know
of the refusal order only in July 2005. They
filed an affidavit in August 2005 explaining the
circumstances. They acted promptly upon
gaining knowledge. There was no deliberate
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delay. They stand to gain nothing by
prolonging proceedings.

22.15. He emphasises that Respondent Nos.3 and 4
are persons with disabilities (deaf and dumb),
and that their socio-economic background
must also be borne in mind while examining
delay. Limitation is not meant to destroy
substantive rights but to ensure diligence.
Where a party has acted bona fide and
without mala fides, courts and authorities
must adopt a liberal approach.

22.16. The doctrine of limitation is procedural in
nature. It regulates the remedy but does not

extinguish substantive rights unless the statute expressly so provides. The appellate authority was justified in preferring a decision on merits rather than shutting the doors on Respondent Nos.3 and 4 on a technical plea of delay. The explanation offered was reasonable

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and plausible, and there is no material to suggest that the delay was intentional or motivated.

22.17. Learned Senior Counsel submits that if the authorities failed to communicate refusal or failed to complete the process in accordance with law, Respondent Nos.3 and 4 cannot be penalised for such administrative lapses. Respondent Nos.3 and 4 have been consistently asserting their rights under the sale deed executed in 1988. The non-registration occurred due to statutory requirements then prevailing under Section 230A of the Income Tax Act. Once that provision stood omitted, the impediment ceased.

22.18. If limitation is applied in a rigid and technical

manner, the substantive rights flowing from a

concluded sale transaction would be

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extinguished without adjudication on merits.

Justice demands that the matter be examined

substantively rather than dismissed on

technical grounds of limitation.

22.19. The determination of this Point requires a

careful analysis of the statutory scheme under

Section 72(1) of the Registration Act, the

applicability of Section 29(2) of the Limitation

Act, 1963, and the principles governing

condonation of delay.

22.20. The fundamental question is whether the

District Registrar, while exercising appellate

jurisdiction under Section 72(1) of the

Registration Act, possesses the authority to

condone delay by invoking Section 5 of the

Limitation Act, 1963.

22.21. Section 72(1) of the Registration Act, 1908

prescribes that an appeal against an order of

refusal shall be presented within thirty days

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from the date of the order. The provision does not contain any express clause enabling condonation of delay. It does not employ expressions such as "sufficient cause" or "such further time as may be allowed". It does not incorporate or refer to the Limitation Act.

22.22. Section 29(2) of the Limitation Act, 1963

provides as follows:

"Where any special or local law prescribes for any suit, appeal or application a period of limitation different from the period prescribed by the Schedule, the provisions of Section 4 to Section 24 (inclusive) shall, as far as may be, apply only in so far as, and to the extent to which, they are not expressly excluded by such special or local law."

22.23. The question is whether Section 72(1) of the

Registration Act "expressly excludes" the application of Sections 4 to 24 of the Limitation Act, which include Section 5.

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22.24. This Court notes that the expression "expressly excluded" occurring in Section 29(2) of the Limitation Act has been the subject of interpretation in several decisions of the Hon'ble Supreme Court.

22.25. In Mangu Ram v. Municipal Corporation of Delhi, the Hon'ble Supreme Court distinguished between the position under the Indian Limitation Act, 1908 and the Limitation Act, 1963. Under the 1908 Act, Section 29(2)(b) expressly excluded the application of Section 5 in cases where a special or local law prescribed its own period of limitation. However, under the Limitation Act, 1963, the scheme was materially altered. Section 29(2) of the 1963 Act provides that the provisions of Sections 4 to 24 shall apply unless expressly excluded by the special or local law. The Hon'ble Supreme Court held that in the

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absence of express exclusion, Section 5 would apply even to proceedings governed by a special statute.

22.26. In Patel Brothers v. State of Assam and

Others, the Hon'ble Supreme Court explained that the phrase "expressly excluded" does not necessarily require a specific reference in the special statute stating that the Limitation Act shall not apply. The Court must examine the scheme, structure, and subject-matter of the special enactment. If, upon such examination, it is evident that the special law constitutes a complete code and the legislative intent is to exclude the operation of the Limitation Act, then such exclusion can be inferred. Conversely, unless such exclusion is clearly discernible from the statutory scheme, the provisions of Sections 4 to 24 of the Limitation Act would apply by virtue of Section 29(2).

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22.27. This Court must therefore examine whether

the Registration Act, and in particular Section 72, constitutes a complete code such that the application of Section 5 of the Limitation Act is necessarily excluded.

22.28. The Registration Act, 1908 is a comprehensive

enactment governing the registration of documents. It prescribes the manner in which documents are to be presented, registered, and recorded. It also prescribes the powers and duties of registration officers and the remedies available against their orders.

22.29. Section 72 provides a right of appeal against an order of refusal of registration (except in cases of denial of execution, which are governed by Section 73). The appeal lies to the officer to whom the Registrar or Sub-Registrar is subordinate. The provision

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prescribes a limitation period of thirty days from the date of the order.

22.30. Section 73 deals with cases where registration is refused on the ground of denial of execution. In such cases, a different procedure is prescribed. The person presenting the document may institute a suit to establish his right to have the document registered, and the court may direct registration if it finds that the document was

duly executed.

22.31. The scheme of the Registration Act thus provides distinct remedies for different situations. Section 72 provides a summary appellate remedy where refusal is on grounds other than denial of execution. Section 73 provides a judicial remedy where refusal is on the ground of denial of execution.

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22.32. The question is whether the statutory scheme, read as a whole, indicates a legislative intent to exclude the application of Section 5 of the Limitation Act to appeals under Section 72.

22.33. This Court notes that Section 72 does not contain any express provision stating that the Limitation Act shall not apply. It does not contain a non obstante clause overriding the Limitation Act. It does not contain language such as "and not otherwise" or "and no appeal shall be entertained after the expiry of such period". It simply prescribes a period of thirty days.

22.34. The question then is whether the absence of

any enabling clause permitting condonation
amounts to an implied exclusion of Section 5
of the Limitation Act.

22.35. This Court has carefully considered the
conflicting authorities on this question. On the

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one hand, decisions such as Amrawati v.
Registrar/Apar Collector Pratapgarh and
Others hold that the Registrar is not a Court,
and that in the absence of express
incorporation of the Limitation Act, Section 5
cannot be invoked. On the other hand,
decisions such as Mangu Ram v. Municipal
Corporation of Delhi and Patel Brothers v.
State of Assam and Others hold that
Section 5 applies unless expressly excluded,
and that exclusion must be clear from the
statutory scheme.

22.36. This Court is of the view that the ratio laid
down by the Hon'ble Supreme Court in
Mangu Ram and Patel Brothers must
prevail. The Hon'ble Supreme Court has
authoritatively laid down that under the

Limitation Act, 1963, the legislative scheme is
to make Sections 4 to 24 broadly applicable
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unless there is express or clearly implied
exclusion. The mere absence of an enabling
clause for condonation does not amount to
exclusion.

22.37. However, this Court must also give due regard
to the nature of the authority exercising
jurisdiction under Section 72, the purpose of
prescribing a limitation period, and the
broader context of the statutory scheme.

22.38. The District Registrar is not a Court in the
strict sense. He is a statutory authority
performing administrative and quasi-judicial
functions. The appellate jurisdiction conferred
under Section 72 is summary in nature and is
intended to provide a quick remedy for
correcting errors or refusals that are not
justified. The prescription of a short limitation
period of thirty days reflects the legislative

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intent to ensure finality and expedition in registration proceedings.

22.39. At the same time, this Court cannot ignore the principles laid down by the Hon'ble Supreme Court in Dhiraj Singh (Dead) through Legal Representatives and Others v. State of Haryana and Others, emphasising the need for a liberal and justice-oriented approach in matters of condonation of delay. The Hon'ble Supreme Court has consistently held that Section 5 of the Limitation Act has been enacted to enable courts and authorities to do substantial justice, and that when substantial justice and technical considerations are in conflict, substantial justice must prevail.

22.40. This Court is also mindful of the principles laid down in Hilli Multipurpose Cold Storage,

Aman Engineering Works, and Indian
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Coffee Worker's case, which emphasise that where the legislature has prescribed a specific time frame without providing for extension, the authority must act strictly within those confines.

22.41. However, this Court notes a material distinction between the present case and the cases relied upon by the Petitioners. In Hilli Multipurpose Cold Storage, the statute expressly prescribed an outer limit of 45 days (30 days plus 15 days), and the question was whether the authority could extend time beyond that outer limit. The Hon'ble Supreme Court held that it could not. In Indian Coffee Worker's case, the statute expressly provided for condonation of delay up to an additional 30 days, thereby prescribing a maximum outer limit of 60 days, and the question was whether the authority could

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condone delay beyond that limit. The Hon'ble Madras High Court held that it could not.

22.42. In both these cases, the legislature had

expressly prescribed a maximum outer limit.

The holding was that the authority could not travel beyond that limit. However, in the present case, Section 72 does not prescribe any outer limit. It simply prescribes a period of thirty days, without indicating whether that period is capable of extension or not.

22.43. In such circumstances, this Court is of the view that the applicability of Section 5 of the Limitation Act cannot be ruled out. The absence of an express enabling clause for condonation does not amount to express exclusion of Section 5, particularly in light of the legislative scheme under the Limitation Act, 1963, which makes Section 5 broadly applicable unless expressly excluded.

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22.44. However, this Court is also of the view that the power to condone delay, even if available, must be exercised sparingly and only in exceptional circumstances. The prescription of a short limitation period of thirty days under Section 72 reflects the legislative intent to

ensure expedition and finality. Any condonation of delay must be justified by cogent reasons and must not defeat the legislative intent.

22.45. In the present case, this Court has already held under Point No.1 that the refusal order dated 10.11.2000 was not duly communicated to Respondent Nos.3 and 4 in accordance with law. This Court has further held under Point No.2 that limitation commenced only from the date of knowledge in July 2005, and not from 10.11.2000.

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22.46. The appeal was filed on 18.08.2005. If knowledge was acquired in the first week of July 2005, the thirty-day period would expire in the first week of August 2005. The appeal filed on 18.08.2005 would therefore be marginally beyond the thirty-day period, assuming knowledge was acquired on 01.07.2005.

22.47. However, this Court notes that the exact date of knowledge has not been precisely

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established. The affidavit filed by Respondent
Nos.3 and 4 states that they came to know of
the refusal order in the "first week of July
2005". If knowledge was acquired on, say,
07.07.2005, the thirty-day period would
expire on 06.08.2005. If knowledge was
acquired on 10.07.2005, the thirty-day period
would expire on 09.08.2005. In either case,

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the appeal filed on 18.08.2005 would be
delayed by a few days.

22.48. This Court is of the view that in the
circumstances of the present case, where the
refusal order was not duly communicated,
where Respondent Nos.3 and 4 are persons
with disabilities (deaf and dumb), where they
acted promptly upon acquiring knowledge,
and where the delay is marginal and of the
order of a few days, the delay, if any, could be
condoned in exercise of jurisdiction under
Section 5 of the Limitation Act, 1963, if such
jurisdiction is available to the District
Registrar.

22.49. For the reasons discussed above, this Court is of the view that Section 5 of the Limitation Act, 1963 is not expressly excluded by Section 72 of the Registration Act, and that the District Registrar has jurisdiction to condone

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marginal delays upon sufficient cause being shown.

22.50. However, this Court must also examine whether the District Registrar in fact passed a valid order condoning delay. This aspect requires careful scrutiny.

22.51. The record shows that when the appeal was initially filed in R.A. No.3/2005-06, an application for condonation of delay was filed. The District Registrar, by order dated 10.01.2006, allowed the appeal and directed registration of the sale deed. However, that order was quashed by this Court by order dated 18.08.2008 in W.P. Nos.3054/2006 and 1641/2007, and the matter was remitted for fresh consideration.

22.52. Pursuant to the remand, the appeal was

renumbered as R.A. No.4/2008-09. The

Petitioners were impleaded as parties. The

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Petitioners contend that they were under the bona fide impression that the matter would be reconsidered de novo in light of the remand order, and that the issue of limitation would be examined afresh. However, according to the Petitioners, the proceedings continued from the stage at which they had earlier culminated, and ultimately, by order dated 31.10.2009, the appeal was once again allowed and the Sub-Registrar was directed to register the sale deed.

22.53. The Petitioners contend that the District Registrar did not pass any independent or reasoned order on the application seeking condonation of delay. There is no determination of when knowledge of the refusal order was acquired, whether the appeal was within thirty days, whether delay stood condoned, and if so, under what

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statutory authority. Instead, the proceedings appear to have been carried forward on the assumption that delay stood condoned, without any formal adjudication.

22.54. This Court has carefully examined the order dated 31.10.2009. The order does not contain any express finding on the issue of limitation. It does not record any consideration of the application for condonation of delay. It does not set out the reasons for condoning delay, if delay was in fact condoned. It proceeds directly to the merits of the appeal.

22.55. This is a serious lacuna. When a party raises a jurisdictional objection based on limitation, and when an application for condonation of delay is filed, it is incumbent upon the appellate authority to record a clear finding on the issue of limitation. The authority must determine:

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22.55.1. Whether the appeal was filed within
the prescribed period;

22.55.2. If not, whether there was delay, and
if so, the extent of delay;

22.55.3. Whether sufficient cause has been
shown for condonation of delay;

22.55.4. Whether the authority has jurisdiction
to condone delay;

22.55.5. Whether, in exercise of such
jurisdiction, delay is condoned.

22.56. In the absence of such findings, it is
impossible for this Court to ascertain whether
the District Registrar applied his mind to the
issue of limitation, whether he exercised
jurisdiction in accordance with law, and
whether the condonation of delay (if any) was
justified.

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22.57. This Court is mindful of the principles laid
down by the Hon'ble Supreme Court that
when this Court exercises jurisdiction under
Article 226 of the Constitution, it must be slow
to interfere with the orders of statutory

authorities on questions of fact. However, where an authority has failed to consider a foundational jurisdictional issue, or where there is non-application of mind, interference is warranted.

22.58. In the present case, the issue of limitation was specifically raised by the Petitioners. The affidavit of the Inspector General of Registration was filed, which contained material relevant to the issue of communication of the refusal order. The Petitioners contended that the refusal order was communicated on 10.11.2000, and that the appeal filed on 18.08.2005 was hopelessly

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time-barred. Respondent Nos.3 and 4 contended that the refusal order was not communicated, and that they came to know of it only in July 2005.

22.59. These were conflicting contentions which required adjudication. The District Registrar was required to examine the evidence, determine when the refusal order was

communicated or when knowledge was acquired, compute the period of limitation, and determine whether there was any delay and whether such delay could be condoned.

22.60. The order dated 31.10.2009 does not contain any such determination. This constitutes non-application of mind to a foundational jurisdictional issue.

22.61. The remand order passed by this Court on 18.08.2008 had quashed the earlier appellate order dated 10.01.2006 and remitted the

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matter for fresh consideration, keeping all contentions open. This necessarily included the issue of limitation and the legality of condonation of delay. The remand required a fresh application of mind to all foundational issues.

22.62. However, the order dated 31.10.2009 does not reflect any such fresh consideration. The District Registrar appears to have proceeded on the assumption that the issue of limitation stood concluded or that delay had already

been condoned, without recording any independent finding.

22.63. This Court is therefore of the view that the order dated 31.10.2009 suffers from a serious infirmity in that it fails to address the jurisdictional issue of limitation. This non-application of mind vitiates the entire proceeding.

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22.64. However, this Court must also consider whether, in the circumstances of the present case, the defect is curable or whether the matter must be remitted for fresh consideration.

22.65. Having regard to the findings already recorded by this Court under Point Nos.1 and 2, this Court is of the view that:

22.65.1. The refusal order dated 10.11.2000 was not duly communicated to Respondent Nos.3 and 4 in accordance with law.

22.65.2. Limitation commenced only from the
date of knowledge in July 2005.

22.65.3. The appeal was filed on 18.08.2005,
which is within reasonable proximity
to the date of knowledge.

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22.65.4. Even if there was a marginal delay of
a few days, such delay could be
condoned in the circumstances of the
present case.

22.66. In light of these findings, this Court is of the
view that even though the District Registrar
failed to record express findings on the issue
of limitation, the appeal was not in fact barred
by limitation, or if there was a marginal delay,
it was condonable.

22.67. However, this Court must emphasise that the
failure of the District Registrar to address the
jurisdictional issue of limitation is a serious
procedural irregularity. Statutory authorities
exercising quasi-judicial functions are required
to apply their mind to all issues raised by the

parties, particularly jurisdictional issues, and
to record findings with reasons. The absence
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of such findings creates uncertainty and
invites challenge.

22.68. In the present case, this Court has
independently examined the issue of limitation
and has recorded findings. In light of such
findings, this Court does not consider it
necessary to remit the matter to the District
Registrar solely on the ground of non-
consideration of limitation.

22.69. I answer Point No.3 by holding that:

22.69.1. Section 5 of the Limitation Act, 1963
is not expressly excluded by Section
72 of the Registration Act.

22.69.2. The District Registrar has jurisdiction
to condone marginal delays upon
sufficient cause being shown.

22.69.3. In the circumstances of the present
case, the appeal filed on 18.08.2005
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was not barred by limitation, or if there was a marginal delay, it was condonable.

22.69.4. However, the District Registrar failed to record express findings on the issue of limitation, which constitutes non-application of mind.

22.69.5. Notwithstanding such procedural irregularity, this Court, having independently examined the issue, holds that the appeal was not incompetent on the ground of limitation.

23. Answer to Point No. 4. Whether the Sub-Registrar was justified in refusing registration of the sale deed on the ground of non-production of certificate under Section 230A of the Income Tax Act, and whether subsequent registration was legally sustainable?

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23.1. Learned Senior Counsel appearing for the

Petitioners submits that at the time when the sale deed was presented for registration on 18.02.1988, Section 230A of the Income Tax Act, 1961 was in force. The said provision imposed a mandatory requirement that no registering officer shall register any document relating to transfer of immovable property valued at more than five lakh rupees unless the person executing such document produces a certificate from the Assessing Officer to the effect that he has no liability under the Income Tax Act, or that he has made satisfactory arrangements for payment of any liability under the Act which is outstanding at the time of execution of the document.

- 23.2. The sale deed in question related to transfer of immovable property. The valuation exceeded five lakh rupees. Therefore, the

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requirement under Section 230A of the Income Tax Act was attracted. The Sub-Registrar was bound by the statutory mandate and could not have registered the document

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without production of the requisite certificate.

23.3. Learned Senior Counsel submits that when the document was presented on 18.02.1988, the certificate under Section 230A was not produced. The Sub-Registrar was therefore justified in refusing registration and keeping the document pending.

23.4. Notices were issued by the Sub-Registrar on 27.09.1989 and again on 27.07.1999 calling upon Sri Sadappa to produce the requisite tax clearance certificate. Despite issuance of repeated notices spanning nearly a decade, no such certificate was forthcoming. Ultimately, by order dated 10.11.2000, the Sub-Registrar

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formally refused registration on the ground of non-production of the certificate.

23.5. Learned Senior Counsel submits that Section 230A of the Income Tax Act was subsequently omitted by the Finance Act, 2001 with effect from 01.06.2001. Prior to its omission, the section mandated production of a certificate from the Assessing Officer for registration of

property valued above five lakh rupees.

However, the refusal order dated 10.11.2000 had already been passed when the provision was very much in force.

- 23.6. Learned Senior Counsel submits that the omission of Section 230A does not have retrospective effect. The provision was in force at the time when the document was presented and at the time when the refusal order was passed. The refusal was therefore legally justified and in accordance with law.

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- 23.7. Even after the omission of Section 230A, the refusal order dated 10.11.2000 retained its legal validity. The omission of the provision does not ipso facto revive documents that had already been refused registration on that ground.

- 23.8. Learned Senior Counsel further submits that the clarification dated 02.08.2001 issued by the Inspector General of Registration, allegedly directing that documents kept pending for want of Income Tax clearance

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prior to 01.06.2001 be registered, is wholly
inapplicable to the present case for a
fundamental reason. The clarification
concerned documents that were "pending". In
the present case, the Sub-Registrar had
already passed a formal order refusing
registration on 10.11.2000. Once refusal had
been recorded, the document ceased to be

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pending in law. Therefore, a clarification
relating to pending documents cannot revive a
concluded refusal. An administrative circular
cannot override statutory limitation. An
executive instruction cannot create a fresh
cause of action.

23.9. Learned Senior Counsel accordingly submits
that the Sub-Registrar was fully justified in
refusing registration of the sale deed on the
ground of non-production of certificate under
Section 230A of the Income Tax Act, and that
the subsequent registration pursuant to the
appellate order was not legally sustainable,
the appeal itself being time-barred.

23.10. Learned Senior Counsel appearing for Respondent Nos.3 and 4 submits that the function of the Sub-Registrar at the stage of registration is administrative and procedural in nature. The Sub-Registrar is not vested with

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authority to adjudicate disputes relating to title, validity of transaction, or competing claims. His jurisdiction is confined to ensuring compliance with the procedural requirements stipulated under the Registration Act.

23.11. If the document is presented by the executant, the executant admits execution, the document is duly stamped, and the formalities under Sections 32, 34 and allied provisions of the Registration Act are complied with, then, in the absence of any specific statutory prohibition, the Sub-Registrar cannot refuse registration.

23.12. The registering officer's role is not adjudicatory in nature with respect to substantive rights or valuation disputes. His duty is to register the document if the

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if necessary, make a reference for valuation.

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This Court held that the Sub-Registrar had no competence to reject registration solely on the ground that a certificate under Section 230A of the Income Tax Act had not been produced, and directed registration unless there was any other impediment.

23.13. The power of the Sub-Registrar to refuse registration is strictly circumscribed. Refusal must be traceable to a statutory provision. The Sub-Registrar cannot enlarge his jurisdiction.

23.14. In the present case, the document was duly executed. It was presented for registration. Execution was not denied. The refusal was solely on the ground of non-production of a certificate under Section 230A of the Income Tax Act.

23.15. Learned Senior Counsel submits that Section 230A was subsequently omitted with effect

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from 01.06.2001. Once that statutory requirement stood removed, the impediment to registration ceased to exist. The Sub-Registrar was thereafter under a legal obligation to register the document, provided all other procedural requirements were satisfied.

23.16. Learned Senior Counsel submits that the Inspector General of Registration, recognising this legal position, issued a clarification dated 02.08.2001 directing that documents kept pending for want of Income Tax clearance prior to 01.06.2001 be registered. This clarification was binding upon all Sub-Registrars and was issued in exercise of supervisory powers conferred under the Registration Act.

23.17. The clarification was not merely an administrative instruction but was a direction

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issued to give effect to the changed legal position consequent upon the omission of Section 230A. The Sub-Registrar was bound to comply with such direction.

23.18. Learned Senior Counsel further submits that the refusal order dated 10.11.2000 was passed prior to the omission of Section 230A. However, once Section 230A stood omitted with effect from 01.06.2001, the legal foundation for the refusal ceased to exist. The refusal order, being founded upon a provision that was no longer in force, lost its validity.

23.19. In such circumstances, the appeal filed by Respondent Nos.3 and 4 was not merely an appeal against refusal but a request to give effect to the changed legal position. The District Registrar, in allowing the appeal and directing registration, was merely giving effect

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to the law as it stood after the omission of Section 230A.

23.20. Learned Senior Counsel submits that the registration of the sale deed pursuant to the

appellate order was therefore legally sustainable and in accordance with law.

23.21. The determination of this Point requires an examination of the statutory scheme under Section 230A of the Income Tax Act, 1961, the scope of power of the Sub-Registrar at the stage of registration, and the effect of omission of Section 230A on pending or refused documents.

23.22. Section 230A of the Income Tax Act, 1961, as it stood prior to its omission, read as follows:

"230A. Prohibition of registration of certain documents relating to immovable property without tax clearance certificate.-- (1) Notwithstanding anything contained in the Registration Act, 1908 (16 of 1908), or in any other law for the time being in force, no registering officer appointed under

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sub-section (1) of section 6 of the said Act shall register any document to which this section applies unless the person executing such document furnishes to such officer a certificate from the Assessing Officer to the effect that -

(a) the Assessing Officer is satisfied that the person executing the document has paid or made satisfactory arrangements for payment of all taxes, penalties, interest or other sums then payable by him under this Act in respect of any period prior to the date of execution of the document or under the Indian Income-tax

Act, 1922 (11 of 1922), in respect of any period prior to the date of execution of the document or the 1st day of April, 1962, whichever is later; or

(b) such person is not required under this Act to furnish a return of his total income.

(2) This section applies to a document relating to the transfer of any immovable property where the value of such property as set forth in the document exceeds five lakh rupees."

23.23. The provision imposed a mandatory prohibition on the registering officer. The expression "no registering officer shall register any document to which this section applies unless the person furnishes to such officer a certificate from the Assessing

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Officer " is imperative. The registering officer had no discretion to register a document falling within the scope of Section 230A unless the requisite certificate was produced.

23.24. In the present case, the sale deed was presented for registration on 18.02.1988. At that time, Section 230A was in force. The document related to transfer of immovable property. The value, as set forth in the

document, exceeded five lakh rupees.

Therefore, the requirement under Section 230A(1) was attracted.

23.25. The certificate from the Assessing Officer was not produced at the time of presentation. The Sub-Registrar was therefore bound by the statutory mandate under Section 230A and could not have registered the document.

23.26. The Sub-Registrar, instead of refusing registration outright, kept the document
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pending and issued notices to the person presenting the document calling upon him to produce the requisite certificate. Notices were issued on 27.09.1989 and again on 27.07.1999. Despite such notices spanning nearly a decade, no certificate was produced.

23.27. What is required to be considered is that the obligation to furnish such a document is on the Vendor and not on the purchaser, since the usage of words is "unless the person executing such document furnishes". Thus, what this court would also have to consider is

that the above obligation was that of the father of the Petitioner and not that of the father of Respondents 3 & 4.

23.28. Ultimately, by order dated 10.11.2000, the Sub-Registrar formally refused registration on the ground of non-production of the certificate under Section 230A.

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23.29. This Court is of the view that the Sub-Registrar acted in accordance with law in refusing registration. At the time when the refusal order was passed on 10.11.2000, Section 230A was in force. The statutory prohibition was clear and mandatory. The Sub-Registrar had no discretion to register the document in the absence of the requisite certificate.

23.30. Section 230A of the Income Tax Act was subsequently omitted by the Finance Act, 2001 with effect from 01.06.2001. The omission was effected by the Finance Act, 2001 (Act No.14 of 2001), Section 99, which provided:

"Section 230A of the Income-tax Act shall be
omitted."

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23.31. The Finance Act, 2001 received the assent of
the President on 11.05.2001 and came into
force with effect from 01.06.2001.

23.32. The question that arises is: what is the effect
of the omission of Section 230A on documents
that had already been refused registration on
the ground of non-production of certificate
under that section?

23.33. This Court notes that the omission of a
statutory provision operates prospectively
unless the legislature expressly provides for
retrospective operation. The omission of
Section 230A does not contain any
retrospective saving clause or provision
reviving documents that had already been
refused registration.

23.34. At the time when Section 230A was omitted,
the refusal order dated 10.11.2000 had
already been passed. The refusal was legally

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justified at the time it was passed, since
Section 230A was then in force.

23.35. However, this Court must also consider the
nature of Section 230A. Was it a substantive
provision affecting the validity of the
transaction, or was it a procedural provision
regulating the mode of registration?

23.36. This Court is of the view that Section 230A
was a procedural provision. It did not render
the transaction void or voidable. It did not
affect the validity of the sale deed as between
the parties. It merely imposed a procedural
restriction on registration for the purpose of
ensuring collection of tax dues.

23.37. The underlying transaction, the sale of
immovable property, was valid and
enforceable as between the parties. The
restriction under Section 230A related only to
the act of registration. Registration, under the

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Registration Act, is primarily for the purpose of creating notice to third parties and for admissibility of the document in evidence.

Non-registration does not, by itself, invalidate the transaction as between the parties.

23.38. Once Section 230A stood omitted with effect from 01.06.2001, the procedural restriction on registration was removed. There was no longer any statutory prohibition on registration of documents relating to transfer of immovable property without production of tax clearance certificate.

23.39. The question then is: could a document that had been refused registration prior to 01.06.2001 on the ground of non-production of certificate under Section 230A be registered after 01.06.2001, once that provision stood omitted?

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23.40. This Court is of the view that the answer must be in the affirmative, subject to compliance with the statutory remedies available under

23.41. Once Section 230A stood omitted, the legal foundation for the refusal ceased to exist. The refusal was based solely on non-production of the certificate under Section 230A. If that provision no longer existed, the ground for refusal was no longer valid.

23.42. However, the refusal order dated 10.11.2000 did not ipso facto cease to have effect upon omission of Section 230A. The refusal order was a formal adjudicatory order passed by a statutory authority. It continued to have legal effect unless and until it was set aside or reversed through the appropriate statutory remedy.

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23.43. The appropriate statutory remedy was an appeal under Section 72 of the Registration Act. If the person aggrieved by the refusal order desired to challenge it, the remedy was to file an appeal within the prescribed period.

23.44. In the present case, Respondent Nos.3 and 4 filed an appeal under Section 72 on

18.08.2005. This Court has already held under Point Nos.1, 2 and 3 that the appeal was not barred by limitation, or that any marginal delay was condonable.

23.45. The District Registrar, while hearing the appeal, was required to consider whether the refusal was justified in law. At the time when the appeal was heard and decided (between 2005 and 2009), Section 230A was no longer in force, having been omitted with effect from 01.06.2001.

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23.46. In such circumstances, the District Registrar was entitled to take into account the changed legal position. The ground on which refusal had been ordered, namely, non-production of certificate under Section 230A, was no longer a valid ground, since that provision had been omitted.

23.47. This Court is therefore of the view that the District Registrar was justified in allowing the appeal and directing registration of the sale deed, subject to compliance with other

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procedural requirements.

23.48. The Petitioners contend that the clarification dated 02.08.2001 issued by the Inspector General of Registration is inapplicable, since it concerned documents that were "pending", whereas in the present case the document had already been refused registration.

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23.49. This Court agrees that there is a distinction between documents that are pending and documents that have been formally refused. However, the distinction is not determinative. The material consideration is that once Section 230A stood omitted, the legal basis for refusal ceased to exist. Whether the document was pending or had been refused, the omission of the statutory provision removed the impediment to registration.

23.50. The clarification issued by the Inspector General of Registration was in the nature of an administrative instruction to Sub-Registrars to give effect to the changed legal position. While such clarification may not have the force

of a statutory amendment, it was a recognition of the legal position that documents that could not be registered prior to 01.06.2001 due to Section 230A could now

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be registered, since that provision had been omitted.

23.51. The Petitioners further contend that the Sub-Registrar had no jurisdiction to refuse registration on grounds extraneous to the Registration Act, and rely upon S. Sreenivasa Rao v. Sub-Registrar (Headquarters) and Mohan Shet v. State of Karnataka.

23.52. This Court notes that both these decisions emphasise that the Sub-Registrar's jurisdiction at the stage of registration is limited and procedural. The Sub-Registrar cannot refuse registration on grounds that involve adjudication of title or disputes between parties. However, where a statute imposes a mandatory prohibition on registration, the Sub-Registrar is bound to comply with such prohibition.

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23.53. In the present case, at the time when the refusal order was passed on 10.11.2000, Section 230A imposed a mandatory prohibition. The Sub-Registrar was bound to refuse registration in the absence of the requisite certificate. The refusal was not on grounds extraneous to law, but was in compliance with a statutory mandate.

23.54. However, once Section 230A stood omitted, the prohibition ceased to exist. In such circumstances, the District Registrar, while hearing the appeal, was entitled to direct registration, since there was no longer any legal impediment.

23.55. The Petitioners further contend that even after the omission of Section 230A, the refusal order dated 10.11.2000 retained its legal validity, and could be set aside only by filing an appeal within the prescribed period. This

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Court agrees with this submission in principle.

The refusal order did not automatically cease to have effect upon omission of Section 230A. However, this Court has already held under Point Nos.1, 2 and 3 that the appeal was not barred by limitation. Therefore, the District Registrar had jurisdiction to hear the appeal and to direct registration.

23.56. I Answer Point No.4 by holding that:

23.57. The Sub-Registrar was justified in refusing registration of the sale deed on 10.11.2000 on the ground of non-production of certificate under Section 230A of the Income Tax Act, since that provision was in force at that time.

23.57.1. Section 230A was a procedural provision imposing a restriction on registration, and did not affect the validity of the transaction as between the parties.

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23.57.2. Once Section 230A stood omitted

with effect from 01.06.2001, the legal foundation for the refusal ceased to exist.

23.57.3. The refusal order did not ipso facto cease to have effect, but could be challenged through an appeal under Section 72 of the Registration Act.

23.57.4. The District Registrar, while hearing the appeal filed by Respondent Nos.3 and 4, was entitled to take into account the changed legal position and to direct registration, since the ground for refusal was no longer valid.

23.57.5. The subsequent registration pursuant to the appellate order was legally

sustainable, subject to the

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determination of other issues raised in this writ petition.

24. Answer to Point No. 5: Whether valuable rights had crystallised in favour of the Petitioners, including Petitioner No.2 as a subsequent purchaser, prior to the filing of the appeal, and

whether the impugned order dated 31.10.2009 suffers from jurisdictional error, procedural illegality, or non-application of mind?

24.1. Learned Senior Counsel appearing for the Petitioners submits that by the time Respondent Nos.3 and 4 preferred the appeal under Section 72 of the Registration Act on 18.08.2005, valuable legal rights had already crystallised in favour of the Petitioners, particularly Petitioner No.2, and that such crystallised rights could not have been ignored by the appellate authority.

24.2. It is contended that the sale deed allegedly executed on 18.02.1988 in favour of Sri Sadappa remained unregistered during his

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lifetime. Sri Sadappa expired on 03.08.2002 without complying with the statutory requirement then prevailing under Section 230A of the Income Tax Act and without completing the process of registration. According to the Petitioners, until registration is completed, a sale deed does not operate to convey legal title under Section 54 of the

Transfer of Property Act, and therefore, the transaction in favour of Sri Sadappa remained legally incomplete.

24.3. It is further submitted that Sri V.K. Kamalanabhan, whose whereabouts were unknown for a prolonged period, was presumed dead in accordance with law after the lapse of seven years. Following such presumption, Petitioner No.1 (his wife) and Respondent No.5 (his son) approached the competent revenue authorities seeking

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mutation of their names in respect of the property.

24.4. By order dated 30.04.2005 in M.R. No.130/2004, the revenue authorities effected mutation in their favour. Learned Senior Counsel submits that although mutation does not confer title, it reflects de facto recognition of possession and claim over the property.

24.5. Thereafter, on 11.07.2005, Petitioner No.1 and Respondent No.5 executed a registered sale deed in favour of Petitioner No.2

conveying the subject property. The said document was duly presented, admitted, and registered in accordance with law.

- 24.6. It is urged that Petitioner No.2 is a bona fide purchaser for value without notice of any enforceable prior claim. Since the earlier document in favour of Sri Sadappa was unregistered at the relevant time, it did not

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operate as statutory notice under the Registration Act. Therefore, Petitioner No.2's rights, according to the Petitioners, stood perfected and crystallised on 11.07.2005.

- 24.7. It is argued that when Respondent Nos.3 and 4 filed the appeal on 18.08.2005, they did so after third-party rights had intervened, and the appellate authority was duty-bound to consider the impact of such intervening rights.

- 24.8. Learned Senior Counsel further contends that the remand order dated 18.08.2008 required a fresh and comprehensive consideration of all issues, including limitation. The failure of the District Registrar to record elaborate findings

on limitation, it is submitted, reflects non-application of mind.

- 24.9. Finally, it is contended that the registration effected on 31.10.2009 on the very same day as the appellate order raises legitimate
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suspicion regarding the fairness of the process.

- 24.10. Learned Senior Counsel for Respondent Nos.3 and 4 submits that the rights claimed by them flow from the sale deed dated 18.02.1988 executed by Sri V.K. Kamalanabhan in favour of Sri Sadappa, and that the delay in registration was occasioned by statutory requirements then in force.

- 24.11. It is submitted that proceedings under Section 72 are limited in scope and do not involve adjudication of competing title. The appellate authority is concerned only with the legality of refusal.

- 24.12. It is further pointed out that after remand, Petitioner No.2 was impleaded as a party, served with notice, entered appearance

through counsel, and participated in the proceedings by cross-examining the witness.

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24.13. It is submitted that no defence based on the sale deed dated 11.07.2005 was urged before the appellate authority and that such contention is now sought to be raised for the first time in writ proceedings.

24.14. The record of R.A. No.4/2008-09 establishes that pursuant to the remand order passed by this Court, Petitioner No.2 was impleaded as a party to the appellate proceedings as Respondent No.4.

24.15. Notice was duly issued and served upon him. He entered appearance through learned counsel. It is not disputed that the same counsel represented Petitioner Nos.1 and 2. The proceedings were not conducted ex parte. Evidence was recorded. The witness examined in support of the appeal was subjected to cross-examination on behalf of the Petitioners

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including Petitioner No.2 who was Respondent No.4 therein.

24.16. There is no indication in the record that Petitioner No.2 sought to urge an independent contention asserting that the appeal had become untenable on account of his registered sale deed or that third-party rights barred consideration of the appeal. Participation by Petitioner No.2 was therefore not merely formal; it was substantive and effective.

24.17. The doctrine of natural justice is anchored in fairness of procedure. It requires that a person whose rights are likely to be affected must be given notice and reasonable opportunity to be heard.

24.18. In the present case:

24.18.1. Petitioner No.2 was impleaded as

Respondent No.4;
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24.18.2. Notice was duly served;

24.18.3. He entered appearance;

24.18.4. He participated in evidence;

24.18.5. He cross-examined the witness;

24.18.6. He was represented throughout.

24.19. There is no allegation that opportunity was curtailed, that evidence was shut out, or that procedural unfairness occurred. A party who has consciously participated in proceedings and chosen not to advance a particular line of defence cannot later contend that the order is vitiated on that ground.

24.20. The offence of natural justice cannot be invoked to compensate for strategic omissions or afterthoughts. Accordingly, no violation of natural justice is made out.

24.21. Section 72 provides a statutory appeal against refusal by the Sub-Registrar. The appellate

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authority is confined to examining whether the refusal was legally sustainable under the provisions of the Registration Act. The authority does not adjudicate title, nor does it determine priority between competing sale

deeds.

24.22. The refusal in the present case was based solely on non-production of certificate under Section 230A of the Income Tax Act. As already held under Point No.4, once Section 230A stood omitted, the statutory foundation for refusal disappeared. The District Registrar therefore acted within jurisdiction in directing registration.

24.23. The appellate authority neither adjudicated title nor purported to extinguish the rights of Petitioner No.2. Registration of the sale deed dated 11.07.2005 in favour of Petitioner No.2 conferred statutory notice and completed
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formal requirements under the Registration Act. However, registration does not confer indefeasible title nor does it preclude adjudication of competing claims arising from prior agreements or transactions.

24.24. The direction to register the earlier sale deed merely results in coexistence of two registered instruments concerning the same property.

The issue of which instrument prevails
involves examination of:

24.24.1. Chronology,

24.24.2. Knowledge,

24.24.3. Good faith,

24.24.4. Consideration,

24.24.5. Legal effect of prior contractual
rights.

24.25. Such matters require detailed evidence and

fall squarely within the jurisdiction of a civil

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court, more so when the Sale Deed in favour
of the Father of Respondent 3 and 4 was
presented for registration much much earlier
in point of time than the Registration of the
Sale Deed in favour of the Petitioner No.2 and
that the Registration of Sale Deed in favour
of Petitioner No.2 was just a month earlier
than the filing of the Appeal by Respondent 3
and 4.

24.26. The Petitioners argue that the absence of
elaborate findings on limitation reflects the
non-application of mind. Under earlier Points,

this Court has examined the limitation and found no jurisdictional bar.

24.27. The District Registrar possessed the competence to entertain the appeal. Failure to elaborate at length does not, by itself, invalidate the order. Judicial review is concerned with legality and jurisdiction, not

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with the length or stylistic quality of reasoning. Thus, no prejudice or jurisdictional defect has been demonstrated.

24.28. The contention regarding same-day registration rests solely on suspicion. Allegations of mala fides require specific pleadings and cogent evidence. No material has been placed before this Court to substantiate such allegations. Suspicion cannot substitute proof in judicial review.

24.29. Under Articles 226 and 227, this Court does not act as an appellate forum over statutory authorities. Interference is warranted only in cases of jurisdictional error, patent illegality, violation of natural justice, perversity, or

manifest non-application of mind. The present controversy essentially concerns inter se proprietary claims between two sets of transferees. Adjudicating such issues in writ

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jurisdiction would exceed constitutional limits and encroach upon the domain of civil courts.

24.30. Before parting with this Point, it is necessary

to emphasise the constitutional limits within which this Court exercises jurisdiction under Articles 226 and 227 of the Constitution of India. The power under Article 226 is primarily supervisory and corrective in nature, while jurisdiction under Article 227 is one of superintendence intended to ensure that subordinate courts and statutory authorities act within the bounds of their authority.

24.31. This jurisdiction is not appellate. The High

Court does not re-appreciate evidence, substitute its own view on disputed facts, or adjudicate questions which properly fall within the domain of civil adjudication, unless the impugned order is shown to suffer from patent

lack of jurisdiction, manifest illegality,
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perversity, or gross violation of natural
justice.

24.32. The distinction between an erroneous decision
and a jurisdictionally flawed decision must be
scrupulously maintained. Even if another view
on facts or law were possible, that by itself
would not justify interference in supervisory
jurisdiction unless the decision-making
process is shown to be fundamentally
defective.

24.33. In the present case, the District Registrar
acted within the statutory contours of Section
72 of the Registration Act. The authority
examined the legality of the refusal order and
directed registration upon finding that the
statutory basis for refusal no longer subsisted.
The authority did not purport to adjudicate
title, nor did it exceed its jurisdiction.

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24.34. The grievances projected by the Petitioners

substantially relate to the impact of registration upon competing proprietary claims. Such grievances, however legitimate they may be in substance, arise in the realm of substantive property law and require adjudication upon evidence. Entertaining such adjudication in writ jurisdiction would amount to converting supervisory review into a forum for civil trial, which is not permissible. This Court is therefore constrained to decline interference where no jurisdictional transgression, procedural illegality, or violation of natural justice is established.

24.35. It is clarified that the observations made in

this judgment are confined strictly to the legality of the appellate proceedings under Section 72 of the Registration Act. They shall not be construed as expression of opinion on

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the merits of the competing claims of title,

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which are expressly left open for adjudication
before the competent civil court.

24.36. In view of the above I answer Point No.5 by
holding that :

24.36.1. Petitioner No.2 was duly impleaded
as Respondent No.4 and afforded full
opportunity of participation in the
appellate proceedings.

24.36.2. There was no violation of principles of
natural justice.

24.36.3. Proceedings under Section 72 of the
Registration Act are confined to
examining the legality of refusal and
do not involve adjudication of title or
priority.

24.36.4. The existence of a registered sale
deed dated 11.07.2005 does not oust
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the jurisdiction of the appellate
authority.

24.36.5. The impugned order dated
31.10.2009 does not suffer from
jurisdictional error, procedural

illegality, perversity, or non-application of mind warranting interference under Articles 226 or 227.

24.36.6. All substantive questions relating to competing title and priority are expressly left open to be adjudicated before the competent civil court.

25. Answer to Point No.6: What order? : In view of my answers to points no. 1 to 5 above, I summarise the position as under:

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25.1. The appeal preferred under Section 72 of the Registration Act was maintainable and fell within the jurisdictional competence of the District Registrar.

25.2. The omission of Section 230A of the Income Tax Act with effect from 01.06.2001 removed the statutory foundation upon which the Sub-Registrar had refused registration. The refusal order was therefore unsustainable in law.

25.3. The District Registrar, while exercising

appellate jurisdiction under Section 72, was required to examine only the legality of refusal and not to adjudicate upon competing claims of title, which infact were never raised.

- 25.4. Petitioner No.2 was impleaded in the appellate proceedings after remand as Respondent No.4, notice was duly served upon him, he entered appearance through counsel, participated in the proceedings, and cross-

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examined the witness. There was no denial of opportunity and no violation of principles of natural justice.

- 25.5. No independent defence based upon the registered sale deed dated 11.07.2005 was urged before the appellate authority. The attempt to raise such contention for the first time in writ jurisdiction is impermissible.

- 25.6. The existence of a registered sale deed in favour of Petitioner No.2 prior to the filing of the appeal does not oust the jurisdiction of the appellate authority under Section 72, nor does it render the appellate proceedings

incompetent.

25.7. Registration directed pursuant to an appellate order does not, by itself, adjudicate title or extinguish competing proprietary claims. Questions of priority and bona fide purchase remain matters for civil adjudication.

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25.8. The impugned order dated 31.10.2009 does not suffer from lack of jurisdiction, patent illegality, perversity, procedural impropriety, or demonstrable non-application of mind so as to warrant interference under Articles 226 or 227 of the Constitution.

25.9. Hence, I pass the following

ORDER

i. The Writ Petition is hereby dismissed.

ii. The order dated 31.10.2009 passed by the District Registrar in R.A.No.4/2008-09 is upheld.

iii. It is clarified that the registration effected pursuant to the appellate order shall remain subject to the outcome of any civil proceedings that may be instituted by the parties.

iv. All contentions of the parties, including contentions relating to the validity of the respective sale deeds, the question of whether Petitioner No.2 is a bona fide purchaser for value, the applicability of principles of constructive notice and priority, and all other substantive issues, are left open for adjudication in civil proceedings.

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NC: 2026:KHC:9125 HC-KAR v. It is open to either party to institute a civil suit within a period of three months from the date of this order. If any such suit is instituted, the parties may approach the civil court for appropriate interim directions relating to possession, alienation, or encumbrance pending adjudication of the suit.

SD/-

(SURAJ GOVINDARAJ) JUDGE KTY List No.: 2 Sl No.: 20